

Notice to Offeror(s)/Supplier(s): The Government reserves the right to cancel this solicitation, either before or after the closing date. In the event the Government cancels this solicitation, the Government has no obligation to reimburse an offeror for any costs."

This is a combined synopsis/solicitation for commercial items prepared in accordance with the format in Subpart 12.6, as supplemented with additional information included in this notice. This announcement constitutes the only solicitation; quotes are being requested and a written solicitation will not be issued. Solicitation Number **140P2126Q0103** is issued as a Request for Quote (RFQ) which constitutes the entire solicitation. This acquisition will be conducted pursuant to FAR Part 13. This solicitation document incorporates all mandatory commercial item provisions and clauses in effect through Federal Acquisition Circular **2026-01**, effective 3 March 2026. This is a small business set-aside. The North American Industry Classification System (NAICS) code is **561730**, Landscaping Services and the related small business size standard is **\$9.5M**.

The government anticipates award of one (1), firm-fixed price contract.

REQUIREMENT: Independently, and not as an agent of the government, the contractor shall provide all labor, supervision, materials, tools, supplies, transportation, barricades, signs, traffic control measures/coordination and equipment incidental to and necessary to execute safe full spectrum tree care operations and woody debris removal along trails, roads, and park boundary as well as provide full spectrum tree assessment operations and tagging in and around the work location areas listed for Harpers Ferry National Historical Park.

Due to space limitations, the complete commercial item specifications are contained in Solicitation Number **140P2126Q0103**. Interested contractors should download this document. The National Park Service is not responsible for locating or securing any information that is not identified in the proposal.

The following Federal Acquisition Regulation (FAR) clauses and provisions are applicable to this announcement and are available at [www.acquisition.gov](http://www.acquisition.gov).

52.212-1 Instructions to Offerors-Commercial Products and Commercial Services and addendum; 52.212-2 Evaluation-Commercial Products and Commercial Services and addendum; 52.212-3 Offeror Representations and Certifications-Commercial Products and Commercial Services; 52.212-4 Contract Terms and Conditions-Commercial Products and Commercial Services; 52.212-5 Contract Terms and Conditions Required To Implement Statutes or Executive Orders-Commercial Products and Commercial Services; 52.232-33 Payment by Electronic Funds Transfer-System for Award Management; 52.233-4 Applicable Law for Breach of Contract Claim; and 52.245-1 Government Property.

Questions shall be sent via email to [brian\\_thornton@nps.gov](mailto:brian_thornton@nps.gov) by **2:00 pm EST 11 May 2026**. Questions submitted using any other method will not be entertained. The Point of Contact for this requirement is Brian Thornton, Contracting Officer. Offerors who contact anyone outside of the Office of Acquisition Management regarding this requirement may automatically be excluded from competition.

All quote information shall be submitted for receipt no later than **2:00 pm ED, on 8 June 2026**. Offerors are hereby notified that if your quote is not received by the date/time and at the location specified in this announcement, that it will be considered late. The proposal shall be submitted electronically via email to [brian\\_thornton@nps.gov](mailto:brian_thornton@nps.gov) with the subject line clearly identifying "Solicitation Number **140P2126Q0103** – **HAFE Tree Thinning**." Offers by telephone, transmitted via facsimile (fax), or submitted using any other method will **not** be accepted.

All contractors must be registered in [www.SAM.gov](http://www.SAM.gov) to be considered eligible for award.

# SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES

**NOTE: OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24, AND 30.**

1. REQUISITION NUMBER

**0044043606**

PAGE 1 OF 57

2. CONTRACT NUMBER

3. AWARD/EFFECTIVE DATE

4. ORDER NUMBER

5. SOLICITATION NUMBER  
140P2126Q0103

6. SOLICITATION ISSUE DATE

**05/05/2026**

7. FOR SOLICITATION INFORMATION CALL:

a. NAME

**Brian Thornton**

b. TELEPHONE NUMBER (No collect calls)

**2402208104**

8. OFFER DUE DATE/ LOCAL TIME

**06/08/2026 1400 ED**

9. ISSUED BY

CODE

**PWA**

NPS, WASO - WCP Contracting  
P.O.Box 25287 MS WCP  
Denver CO 80225

10. THIS ACQUISITION IS

☐ UNRESTRICTED OR

☒ SET ASIDE: **100.00%** FOR:

☒ SMALL BUSINESS

☐ WOMEN-OWNED SMALL BUSINESS (WOSB)

NORTH AMERICAN  
INDUSTRY CLASSIFICATION  
STANDARD (NAICS):

**561730**

☐ HUBZONE SMALL BUSINESS

☐ ECONOMICALLY DISADVANTAGED

☐ SERVICE-DISABLED

☐ WOMEN-OWNED SMALL BUSINESS (EDWOSB)

SIZE STANDARD:

**\$9.5**

☐ VETERAN-OWNED SMALL BUSINESS (SDVOSB)

☐ 8(A)

11. DELIVERY FOR FREE ON BOARD (FOB) DESTINATION UNLESS BLOCK IS MARKED

☒ SEE SCHEDULE

12. DISCOUNT TERMS

13a. THIS CONTRACT IS A  
☐ RATED ORDER UNDER THE DEFENSE PRIORITIES AND ALLOCATIONS SYSTEM - DPAS (15 CFR 700)

13b. RATING

14. METHOD OF SOLICITATION REQUEST  
☒ FOR QUOTE ☐ INVITATION ☐ FOR PROPOSAL  
(RFQ) (IFB) (RFP)

15. DELIVER TO

CODE

**0011282915**

See Schedule

16. ADMINISTERED BY

CODE

**PWA**

See Schedule

17a. CONTRACTOR/ OFFEROR

CODE

FACILITY  
CODE

18a. PAYMENT WILL BE MADE BY

CODE

TELEPHONE NUMBER

☐ 17b. CHECK IF REMITTANCE IS DIFFERENT AND PUT SUCH ADDRESS IN OFFER

18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a UNLESS BLOCK BELOW IS CHECKED ☐ SEE ADDENDUM

19.  
ITEM NO.

20.  
SCHEDULE OF SUPPLIES/SERVICES

21.  
QUANTITY

22.  
UNIT

23.  
UNIT PRICE

24.  
AMOUNT

ADMINISTERED BY:  
NPS, WASO - WCP Contracting  
P.O.Box 25287 MS WCP  
Denver CO 80225 US

DELIVER TO:  
NPS, Harpers Ferry NHP

Continued...

(Use Reverse and/or Attach Additional Sheets as Necessary)

25. ACCOUNTING AND APPROPRIATION DATA

26. TOTAL AWARD AMOUNT (For Government Use Only)

☒ 27a. SOLICITATION INCORPORATES BY REFERENCE (FEDERAL ACQUISITION REGULATION) FAR 52.212-1, 52.212-4. ADDENDA FAR 52.212-3 AND 52.212-5 ARE ATTACHED.

☒ ARE ☐ ARE NOT ATTACHED

☐ 27b. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4. FAR 52.212-5 IS ATTACHED. ADDENDA

☐ ARE ☐ ARE NOT ATTACHED

☐ 28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN COPIES TO ISSUING OFFICE. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS SPECIFIED

☐ 29. AWARD OF CONTRACT: REFERENCE \_\_\_\_\_ OFFER DATED: \_\_\_\_\_. YOUR OFFER ON SOLICITATION (BLOCK 5), INCLUDING ANY ADDITIONS OR CHANGES WHICH ARE SET FORTH HEREIN, IS ACCEPTED AS TO ITEMS:

30a. SIGNATURE OF OFFEROR/CONTRACTOR

31a. UNITED STATES OF AMERICA (SIGNATURE OF CONTRACTING OFFICER)

30b. NAME AND TITLE OF SIGNER (Type or print)

30c. DATE SIGNED

31b. NAME OF CONTRACTING OFFICER (Type or print)

31c. DATE SIGNED

**Brian Thornton**

| 19.<br>ITEM NO. | 20.<br>SCHEDULE OF SUPPLIES/SERVICES                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          | 21.<br>QUANTITY | 22.<br>UNIT | 23.<br>UNIT PRICE | 24.<br>AMOUNT |
|-----------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------|-------------|-------------------|---------------|
| 00010           | <p>230B Zachary Taylor Place<br/>Harpers Ferry WV 25425 US</p> <p>The contractor shall provide all labor, supervision, materials, tools, supplies, transportation, barricades, signs, traffic control measures/coordination and equipment incidental to and necessary to execute safe full spectrum tree care operations and woody debris removal along trails, roads, and park boundary as well as provide full spectrum tree assessment operations and tagging in and around the work location areas listed for Harpers Ferry National Historical Park.<br/>Delivery: 03/26/2027<br/>Period of Performance: 09/14/2026 to 03/26/2027</p> <p>Hazard Tree Mitigation<br/>Product/Service Code: F014<br/>Product/Service Description: NATURAL RESOURCES/CONSERVATION- TREE THINNING</p> <p>Period of Performance: 09/21/2026 to 03/31/2027</p> |                 |             |                   |               |

32a. QUANTITY IN COLUMN 21 HAS BEEN

☐ RECEIVED☐ INSPECTED☐ ACCEPTED, AND CONFORMS TO THE CONTRACT, EXCEPT AS NOTED: \_\_\_\_\_

32b. SIGNATURE OF AUTHORIZED GOVERNMENT REPRESENTATIVE

32c. DATE

32d. PRINTED NAME AND TITLE OF AUTHORIZED GOVERNMENT REPRESENTATIVE

32e. MAILING ADDRESS OF AUTHORIZED GOVERNMENT REPRESENTATIVE

32f. TELEPHONE NUMBER OF AUTHORIZED GOVERNMENT REPRESENTATIVE

32g. EMAIL OF AUTHORIZED GOVERNMENT REPRESENTATIVE

33. SHIP NUMBER

34. VOUCHER NUMBER

35. AMOUNT VERIFIED  
CORRECT FOR

36. PAYMENT

37. CHECK NUMBER

☐ PARTIAL ☐ FINAL☐ COMPLETE ☐ PARTIAL ☐ FINAL

STOCK RECORD (S/R)

38. S/R ACCOUNT NUMBER

39. S/R VOUCHER NUMBER

40. PAID BY

41a. I CERTIFY THIS ACCOUNT IS CORRECT AND PROPER FOR PAYMENT

41b. SIGNATURE AND TITLE OF CERTIFYING OFFICER

41c. DATE

42a. RECEIVED BY (Print)

42b. RECEIVED AT (Location)

42c. DATE RECEIVED (MM/DD/YYYY)

42d. TOTAL CONTAINERS

## TABLE OF CONTENTS

|                                                               |                  |
|---------------------------------------------------------------|------------------|
| <b>SCOPE</b>                                                  | <b>4</b>         |
| <b><i>BACKGROUND, PURPOSE</i></b>                             | <b><i>4</i></b>  |
| <b><i>GENERAL REQUIREMENTS &amp; RESPONSIBILITIES</i></b>     | <b><i>5</i></b>  |
| <b><i>TASKS</i></b>                                           | <b><i>7</i></b>  |
| <b><i>BASE &amp; OPTIONS</i></b>                              | <b><i>9</i></b>  |
| <b><i>DEFINITIONS (Not in FAR)</i></b>                        | <b><i>14</i></b> |
| <b><i>PERIOD OF PERFORMANCE</i></b>                           | <b><i>18</i></b> |
| <b><i>LIST OF ATTACHMENTS</i></b>                             | <b><i>20</i></b> |
| <b><i>PAYMENT SCHEDULE/CLIN STRUCTURE</i></b>                 | <b><i>21</i></b> |
| <b>INSTRUCTIONS TO OFFERORS &amp; AWARD SELECTION PROCESS</b> | <b>22</b>        |
| <b>CLAUSES</b>                                                | <b>24</b>        |
| <b>PROVISIONS</b>                                             | <b>34</b>        |

**PERFORMANCE WORK STATEMENT  
Harper Ferry National Historical Park (HAFE)  
Hazard Tree Mitigation & Assessment**

**D.0 NATIONAL PARK SERVICE**

The National Park Service (NPS) is a bureau of the U.S. Department of the Interior (DOI) that has been entrusted with the care of our national parks since 1916. The NPS preserves unimpaired natural and cultural resources, and values of the National Park System for the enjoyment, education, and inspiration of this and future generations. The NPS cooperates with partners to extend the benefits of natural and cultural resource conservation and outdoor recreation throughout this country and the world.

The NPS - National Capital Area (NCA) supports natural wonders to man-made marvels in Virginia, West Virginia, Maryland, and the District of Columbia. The NCA parks include Antietam National Battlefield, Catoctin Mountain Park, Chesapeake & Ohio Canal National Historical Park, George Washington Memorial Parkway, Harpers Ferry National Historical Park, Manassas National Battlefield Park, Monocacy National Battlefield, National Capital Parks - East, National Mall and Memorial Parks, Potomac Heritage National Scenic Trail, President's Park, Prince William Forest Park, Rock Creek Park, and Wolf Trap National Park for the Performing Arts.

**D.1 BACKGROUND**

Harpers Ferry National Historical Park (HAFE) was established in 1944 to "be a public national memorial commemorating historical events at or near Harpers Ferry". Located at the confluence of the Shenandoah and Potomac Rivers, the park contains 3,645 acres of riparian habitats, floodplains, agricultural fields, geologic exposures, developed areas and upland forests. The forested areas routinely require tree felling, pruning and other landscape management services due to stresses from pests and climate change. The areas that generally require tree felling and pruning are along trails, park boundary and places with high visitation, along with cultural resource features that require delicate care. There are 22 miles of trail that are connected to the Appalachian Trail system and encompasses areas in three states: i.e., West Virginia, Virginia, and Maryland. Due to stressors like the Emerald Ash Borer and others, numerous hardwood trees are dead in place and pose a risk to the safety of visitors and staff along the trails and to infrastructure and utilities such as powerlines and pump stations. The terrain in some areas is steep, rocky, primitive, and often wet. Vehicular access is restricted to the trail heads and access points only and parking along the trails is prohibited. Up to two miles of hiking may be required at some locations in order to perform work. Separate attachments are included that list specific details about the trees that are to be assessed or felled and bucked up or pruned in their current location or removed from site. Tree photos will be provided via a thumb drive following contract being awarded to assist with proper identification on trees slated for pruning or removal. Trees that are assessed as a threat by the contractor as part of this contract shall be tagged, GPS'd and photographed.

**D.2 PURPOSE**

The NPS – National Capital Area (NCA), on behalf of Harpers Ferry National Historical Park is soliciting arboreal services to perform hazard tree mitigation and assessment in targeted areas of the park.

The contractor shall provide all labor, supervision, materials, tools, supplies, transportation, barricades, signs, traffic control measures/coordination and equipment incidental to and necessary to execute safe full spectrum tree care operations and woody debris removal along trails, roads, and park boundary. The contractor shall also provide full spectrum tree assessment operations and tagging in and around the work location areas listed below and on the maps.

The single contract will be awarded, and the period of performance will be 14 September 2026 – 26 March 2027.

### **D.3 LOCATION**

All work is in the NPS – Harpers Ferry National Historical Park (HAFE) within Jefferson County, West Virginia, Loudoun County, Virginia and Washington County, Maryland.

### **D.4 GENERAL CONTRACTOR RESPONSIBILITIES**

- The contractor is responsible for adherence to all Occupational Safety and Health Administration (OSHA) Regulation, specifically 29 CFR 1910 - General Industry.
- Contractor must have adequate liability insurance and proper license to perform all work stated herein.
- The contractor must aid and/or work directly with all Department of the Interior (DOI) – employees, National Park Service employees, state inspector employees and other contractor personnel as necessary in the performance of the work. Some of the work may include attending meetings, site visits, providing recommendations, additional reports/summaries, etc. as requested.
- The contractor must clean gear and equipment prior to entering the park to minimize the chance of spreading invasive seeds into the park and near worksites.
- Contractor must stay in constant communication with COR to communicate work location and accomplishments. This should be done on a weekly basis.

#### **D.4.1 - Conduct**

The contractor's employees shall, at all times while on the job site, whether on or off duty, conduct themselves in a professional, orderly, and safe manner. Rudeness, fighting, being under the influence of alcohol and/or drugs or bringing and/or consuming alcohol and/or drugs, gambling, soliciting, stealing, and any immoral or otherwise undesirable conduct shall not be permitted on the job site and shall result in immediate and permanent removal from the job site of any employee engaging in such conduct. Contractor employees shall not loiter in any working or patron area. Upon completion of their assigned work, employees shall promptly depart from the public areas. All contract employees shall display professionalism in all interactions with the public and Government employees.

The Contracting Officer may require the contractor to remove from the job site any employee working under this contract for reasons of misconduct and security, or if found to be (or suspected to be) under the influence of alcohol, drugs, or other incapacitating agent(s). A contractor employee shall be subject to removal from the premises upon determination by the Contracting Officer that such action is in the best interests of the Government. Such removal from the job site or dismissal from the premises shall not relieve the contractor of the requirement to provide sufficient personnel to perform this contract as specified.

#### **D.4.2 - On-site Supervisor**

- a. As a minimum, the contractor must provide one on-site supervisor to direct all task order personnel and maintenance operations.
- b. The on-site supervisor shall be fluent in the English language to effectively communicate with the contractor's employees and/or subcontractors as well as the COR and other Government personnel.
- c. If the on-site supervisor is not present or absent due to illness or other reasons, the contractor shall provide an alternate supervisor to manage and direct all task order personnel and operations. The alternate supervisor shall possess the same qualifications as the on-site supervisor.
- d. The on-site supervisor shall have a means of direct communication available such as phone or personal electronic device. The supervisor shall be able to respond to communications relayed through the contractor's management channels.
- e. The contractor is required to establish a primary point of contact for communication with the COR. The point of contact shall be responsible for coordinating with the COR and shall possess the managerial authority to make decisions and act on behalf of the contractor. The primary point of contact shall be reasonably available during business hours to field calls and correspondence from the COR and shall be responsive. The primary point of contact is not required to be on-site during work execution.
- f. **The government has elected to require the presence of a current ISA Certified Arborist and licensed state specific Tree Expert on the jobsite at all times.** The credentials may be held by different employees if the requirement to have credentialed personnel on the jobsite is met. The contractor shall provide the arborist's certification ID and state specific Tree Expert license information for verification before work begins, and any time there is a change in the onsite arborist. Certification and currency will be subject to verification by the government utilizing the ISA and State Department of Natural Resources (DNR) databases.

#### **D.4.3 – Site Maintenance**

- a. The contractor shall maintain the work site in a safe, neat, and orderly manner. All supplies and equipment on the project site shall be stored to preclude any damage.
- b. Limited space may be provided for the storage of materials, which shall be stored in a clean and neat condition as approved by the COR. This is not guaranteed; thus, the contractor must be prepared to transit the entire operational footprint daily.
- c. All mud, dirt, debris, foreign objects, or spills of any kind from the contractor's operations shall be cleaned up daily or as requested by the COR.
- d. All contractor generated refuse and waste shall be hauled from the work site daily. Refuse and waste material shall be hauled in trucks with tight fitting covers to prevent spillage on roadways.

- e. It shall be the contractor's responsibility to take whatever measures necessary to assure the protection of the Government assets and to perform the work to cause minimal disruption of ongoing activities near occupied areas. Any government assets damaged as a result of this work shall be restored to previous condition at no cost to the government.

#### **D.5 MANDATORY SUBMITTALS**

- a. Operational Safety Plan (OSP) (upon award/ before work execution)
  1. Shall include comprehensive traffic control plan for pedestrian and cyclists traffic detailing standard operating procedures that shall be followed during the duration of performance. *No work shall be authorized to commence without submission of this plan.*
- b. Completion and certification of credentialed personnel checklist. Including copies of each employees credentials.

#### **D.6 TASKS**

Independently, and not as an agent of the government, the contractor shall furnish all supplies, materials, equipment, labor, labor supervision, tools, barricades, signs, and travel, necessary to perform the work safely.

##### **Tree Risk Mitigation:**

Most trees have been tagged, mapped and photo documented to facilitate the contractor in locating the specimens. Tags however are an aid, and subject to removal by the public or environmental effects outside of the NPS staff's control. The presence of a tag or the lack thereof does not determine the work obligation. The contractor's work obligation is solely contained in the attached material (Attachment 1 & 2) in conjunction with this Performance Work Statement. The contractor shall use available support tables, documents, and electronic aids, as well as other resources as necessary to locate specimens in the field. Use of the "Field Maps" app is recommended for location and during assessment. Collect data in NAD 83 (2011).

Tree photos will be given upon contract award via a thumb drive to ensure that trees can be accurately identified.

All trails shall be left free and clear of all debris. All woody debris within ten (10) feet of a trail edge shall be laid in a manner that facilitates visitors in identifying the contour of the trail.

Tree tags are to be removed as the risk has been mitigated on the **felled trees only** and given to the COR monthly or at the completion of the project. **Tags on trees marked as "prune" shall be left in place.**

**Weekly updates of issues, concerns and progress shall be reported.** Weekly meetings if necessary or to speak with the COR or Cultural Resource Specialist if remediation is needed or concerns are warranted at a specific location.

##### **Perform "Level 2" tree risk assessments (80 hrs.) – boundary & trail:**

- a. Provide a Level 2 Assessment as defined in the International Society of Arboriculture's (ISA) Best Management Practices for Tree Risk Assessment and ANSI A300 Tree Risk Assessment



Standards.

- b. Tree location mapping shall use resource-grade or survey-grade GPS/GNSS receiver capable of achieving horizontal accuracy less than 1 meter using one or a combination of: Satellite-based Augmentation System (SBAS), differential corrections, a Real-time Kinematic (RTK), or a Real-time Network (RTN). Horizontal accuracy values shall be recorded in the GPS/GNSS Metadata fields provided in the Government Furnished Geodatabase. The contractor shall review and verify in the tabular data that the recorded horizontal accuracy values are less than 1 meter and recapture points not meeting the horizontal accuracy requirements. Collect using NAD 83 (2011).
- c. The digital file for all tree(s) with a rating of “Moderate” and above shall contain a minimum of two (2) photos in the digital file (one of the lower trunks and one of the crowns). Photos shall be taken in a manner that optimizes distinct features of the specimen and its background to aid field identification.
- d. All data shall use the file geodatabase format and be compatible with ESRI ArcGIS applications.
- e. The digital assessment format shall be designed and developed in manner that enables print on demand capability of the data/report, or selected portions thereof.
- f. The digital file shall be searchable.
- g. All trees with a risk rating of “Moderate” or above shall receive an identifying tag of a type common to the forestry/arboricultural trades. The tag shall be constructed of aesthetic and resilient material, and contain the inspection year and tree ID information (TASK 2 (i)(1))
- h. Rights to all information, digital and printed, shall be conveyed to the government.
- i. At a minimum, GPS tabulated data shall include:
  - 1) Tag/ID number
  - 2) Common Name
  - 3) Scientific Name
  - 4) DBH
  - 5) Number of stems
  - 6) Target – trail/road/structure, etc.
  - 7) Defect(s)
  - 8) Tree pest damage
  - 9) Disease/health observations
  - 10) Risk rating – low, medium, high, extreme
  - 11) Treatment recommendation (prune, remove or further assessment)
  - 12) Vines present
  - 13) Notes
- j. All tree(s) receiving a rating of “Extreme” shall be reported to the government point of contact within 24 hours and shall include the data in TASK 2 (b) and (i).
- k. Trees with a risk rating of “Low” shall not receive individual documentation but shall receive a risk assessment.

Tree risk report:

- a. Written summary of procedures used in risk assessment.
- b. Map of tree locations
- c. Photos of trees
- d. A description of the trees that were identified as needing pruning, removal or further assessment including;
  - I. Tree species (common & botanical)
  - II. Date of inspection
  - III. Primary target of the tree or tree parts

- IV. Description of tree parts
- V. Overall risk rating
- VI. Mitigation recommendations
- e. A digital copy of the report and risk assessment tabulated data shall convey to the government in PDF and MS Office Suite formats.
- f. A digital copy of exported shapefiles and supporting files that can be used in ArcMap Pro.

**D.6.1 – BASE:** Perform trail tree risk mitigation along Maryland Hts. (~93 trees: 4 Prune & 89 Fell/Buck) and perform 80 hrs. of Level 2 tree risk assessments at sites included in attachment 2 and provide tree risk report. (See info above for specifics)

- All trees shall be felled, when possible, at an angle of 45 degrees or greater from the line of trail so that the brushy / leafy canopy faces away from visitors.
- Woody debris may be left in the general location of felling when such action would not create a hazard (such as on a slope), threaten to convey into a watershed (river or stream), or create an artificial and unaesthetic appearance. Debris shall be felled and staged to convey a natural appearance. **Relief cuts shall be applied to create as much contact with the ground as possible to facilitate decay and improve aesthetics (maximum of 12” from ground).** All debris shall be positioned so that no hazards are presented to park visitors utilizing the trail. The contractor shall make every attempt to place debris in a manner that does not face large chainsaw cuts (white eyes / round eyes) toward the viewing public from the trail. Debris shall be evenly distributed across the landscape.
- Remediate any ground damage to the trail incurred during the performance of operations under the guidance of the cultural resource specialist (e.g., ruts, holes, etc.). Notify COR immediately.
- Cut all stumps remaining in the environment flush 3-4 inches above grade unless taller poles (minimum of 10 feet) may be left for wildlife habitat such that the risk to visitors or property is mitigated.
- Assess trees in areas along the boundary following Tree Risk Assessment (a-k) guidance discussed above.

**D.6.3 - OPTION 1:** Perform trail tree risk mitigation along the Bolivar Hts. trail in accordance with the tree risk assessment data. (~27 trees: 10 Prune & 17 Fell/Buck)

- All trees shall be felled, when possible, at an angle of 45 degrees or greater from the line of trail so that the brushy / leafy canopy faces away from visitors. Fell trees onto park property.
- All trails shall be left free and clear of all debris. All woody debris within ten (10) feet of a trail edge shall be laid in a manner that facilitates visitors in identifying the contour of the trail.
- Woody debris may be left in the general location of felling when such action would not create a hazard (such as on a slope), threaten to convey into a watershed (river or stream), or create an artificial and unaesthetic appearance. Debris shall be felled and staged to convey a natural appearance. **Relief cuts shall be applied to create as much contact with the ground as possible in order to facilitate decay and improve aesthetics (maximum of 12” from ground).** All debris shall be positioned so that no hazards are presented to park visitors utilizing the trail. The contractor shall make every attempt to place debris in a manner that does not face

large chainsaw cuts (white eyes / round eyes) toward the viewing public from the trail. Debris shall be evenly distributed across the landscape.

- Remediate any ground damage to the trail incurred during the performance of operations under the guidance of the cultural resource specialist (e.g., ruts, holes, etc.). Notify COR immediately.
- Cut all stumps remaining in the environment flush 3-4 inches above grade, unless taller poles (minimum of 10 feet) may be left for wildlife habitat such that the risk to visitors or property is mitigated.

**D.6.4 - OPTION 2:** Perform tree risk mitigation along Potoma Wayside trail in accordance with the tree risk assessment data. (~16 trees: 10 Fell/Buck & 6 Prune)

- All trees shall be felled, when possible, at an angle of 45 degrees or greater from the line of trail so that the brushy / leafy canopy faces away from visitors.
- All trails shall be left free and clear of all debris. All woody debris within ten (10) feet of a trail edge shall be laid in a manner that facilitates visitors in identifying the contour of the trail.
- Woody debris may be left in the general location of felling when such action would not create a hazard (such as on a slope), threaten to convey into a watershed (river or stream), or create an artificial and unaesthetic appearance. Debris shall be felled and staged to convey a natural appearance. **Relief cuts shall be applied to create as much contact with the ground as possible to facilitate decay and improve aesthetics (maximum of 12" from ground).** All debris shall be positioned so that no hazards are presented to park visitors utilizing the trail. The contractor shall make every attempt to place debris in a manner that does not face large chainsaw cuts (white eyes / round eyes) toward the viewing public from the trail. Debris shall be evenly distributed across the landscape.
- Remediate any ground damage to the trail incurred during the performance of operations under the guidance of the cultural resource specialist (e.g., ruts, holes, etc.). Notify COR immediately.
- Cut all stumps remaining in the environment flush 3-4 inches above grade unless taller poles (minimum of 10 feet) may be left for wildlife habitat such that the risk to visitors or property is mitigated.

**D.6.5 - OPTION 3:** Perform tree risk mitigation along Appalachian Trail in accordance with the tree risk assessment data. (~22 trees: 2 Prune & 20 Fell/Buck)

- All trees shall be felled, when possible, at an angle of 45 degrees or greater from the line of trail so that the brushy / leafy canopy faces away from visitors.
- All trails shall be left free and clear of all debris. All woody debris within ten (10) feet of a trail edge shall be laid in a manner that facilitates visitors in identifying the contour of the trail.
- Woody debris may be left in the general location of felling when such action would not create a hazard (such as on a slope), threaten to convey into a watershed (river or stream), or create an artificial and unaesthetic appearance. Debris shall be felled and staged to convey a natural appearance. **Relief cuts shall be applied to create as much contact with the ground as possible to facilitate decay and improve aesthetics (maximum of 12" from ground).** All

debris shall be positioned so that no hazards are presented to park visitors utilizing the trail. The contractor shall make every attempt to place debris in a manner that does not face large chainsaw cuts (white eyes / round eyes) toward the viewing public from the trail. Debris shall be evenly distributed across the landscape.

- Remediate any ground damage to the trail incurred during the performance of operations under the guidance of the cultural resource specialist (e.g., ruts, holes, etc.). Notify COR immediately.
- Cut all stumps remaining in the environment flush 3-4 inches above grade unless taller poles (minimum of 10 feet) may be left for wildlife habitat such that the risk to visitors or property is mitigated.

#### **D.6.8 Additional Work that is required**

The requirement(s) for all TASK(S) are conveyed in the attachments. Furthermore, the following requirements shall be adhered to:

- The contractor shall, without additional expense to the Government, be responsible for obtaining and renewing all necessary licenses, certifications, and permits. Contractor is required to submit a copy of licenses prior to work start.
- Upon award and before the execution of work may begin, the Contractor shall provide and maintain a COR approved Operational Safety Plan.
- The ANSI A300 (most current revisions) shall be the performance standard.
- The ANSI Z133 (most current revision) shall be the safety standard.
- The contractor shall make every effort to mitigate damage to surrounding trees during the performance of the work. Damage shall be mitigated by the contractor at no additional charge to the government through the reasonable application of arboricultural techniques in accordance with industry standards and best practices. The contractor is not authorized to fell trees not contained within the work specifications. The contractor may remove necessary brush and ground shrubbery around the base of trees to facilitate safe work performance in accordance with ANSI Z133 standards.
- The contractor shall perform a cursory inspection for live nesting birds and bats before performing tree removals or pruning. This inspection may be performed from the ground on trees that do not require aerial access for work performance (the use of an aid such as field binoculars is highly encouraged). In instances where an aerial lift or climber is employed, the contractor shall also execute a simple aerial inspection. If a nesting site containing live birds or bats is identified, the contractor shall provide notification to the COR in writing and shall include the tree tag number and general disposition. The notification shall be submitted within three (3) business days of the inspection. The contractor shall not perform work on trees identified by inspection as avian nesting sites earlier than 6 SEPTEMBER unless otherwise cleared by the COR.
- In some cases, the government has elected to leave standing spars (minimum of 10 feet) in lieu of removing all trunk-wood from a tree site in order to increase retained biomass in the ecosystem and encourage the development of wildlife habitat.

- All applicable woody debris and biomass twelve (12) inches in diameter and under can be chipped and hauled to the local landfill if applicable.
- Depending on site and conditions, woody debris over twelve (12) inches may be left in the general location of felling when such action would not create a hazard (such as on a slope), threaten to convey into a watershed (river or stream), impede cultural resources, or create an artificial and unaesthetic appearance. Debris shall be felled and staged to convey a natural appearance. **Relief cuts shall be applied to create as much contact with the ground as possible to facilitate decay and improve aesthetics (maximum of 6" from ground).** All non-chipped debris is required to be a minimum of fifteen (15) feet off the trail shoulders and shall be positioned so that no hazards are presented to park visitors utilizing the trail. The contractor shall make every attempt to place debris in a manner that does not face large chainsaw cuts (white eyes / round eyes) toward the viewing public.
- The contractor, at the contractor's discretion, may elect to haul woody debris when doing so is more efficient for meeting the task objective at no additional costs to the government. The contractor is responsible for ensuring compliance with all federal, state, and local statutes related to resources acquired from government/public lands.
- The contractor is required to coordinate workflow / schedules with the COR to deconflict operations with other park operations.

TAGS: Most trees have been tagged to facilitate the contractor in locating the specimens. Tags however are an aid, and subject to removal by the public or environmental effects outside of the NPS staff's control. The presence of a tag or the lack thereof does not determine the work obligation. The contractor's work obligation is solely contained in the Attachments in conjunction with this Performance Work Statement. The contractor shall use available support tables, documents, and electronic aids, as well as other resources as necessary to locate specimens in the field. Tree tags (felled only) are to be removed as the risk has been mitigated and given to the COR on a monthly basis or at the completion of the project.

WEIGHT LIMITS AND LOAD RATINGS: Since Harpers Ferry is a historical thoroughfare, it contains many structures such as bridges, waste weirs, culverts, etc. The contractor shall inspect all such structures before crossing them with equipment and vehicles. The contractor shall assess the suitability of each trafficable structure and determine what equipment or vehicles can safely traverse. The contractor is highly encouraged to use bridging and weight dispersion techniques, such as laying timber/steel plates, to facilitate load dispersion when crossing structures. Because weight limits cannot be provided for waste weirs particularly, the contractor shall not leave any vehicle or piece of equipment in a static state on them (maintain motion). It is the sole responsibility of the contractor to take all measures necessary to safely transit trafficable structures (including the CCT) without compromising structural integrity.

WORKING IN CONSTRICTED / RESTRICTED SPACES: The area of operations consists of elements of modern and historical infrastructure that may constrict or prevent access of heavy equipment. It is solely the responsibility of the contractor to assess the environment and implement methods and means supported by equipment arrays that are suitable to the unique working conditions. The contractor's methods and means shall not compromise the structural integrity of infrastructure, to include (but not limited to) paved surfaces, bridges, and retaining walls.

STAGED / STORED EQUIPMENT: Harpers Ferry NHP is not responsible for any property the contractor chooses to stage on the park during the execution of this task order. The task order does not require any contractor property to be staged. Contractors storing equipment do so at their own discretion.

while assuming all risk and liability. Equipment storage/staging shall be coordinated with, and approved by, the COR in writing.

**TRAFFIC CONTROL, SAFETY, AND PEDESTRIANS:** The identified work areas represent major thoroughfares with dense pedestrian and cyclist traffic. Furthermore, Harpers Ferry NHP represents a major commuter artery for cyclists in the region. The contractor shall be responsible for executing the assigned work in a manner that ensures both sustained trafficability and safety for park users.

**Signage shall be posted at the nearest point on either side of the work zone.**

Work along roadways shall include traffic control measures that conform to US Department of Transportation (US DOT), Federal Highway Administration (FHWA), and CFR 29 requirements, as well as specifications in the Manual on Uniform Traffic Control Devices (MUTCD). It is the sole responsibility of the contractor to take all necessary actions to ensure the safety of all personnel, especially the visiting public, during the execution of operations. The contractor shall follow all federal, state, municipal, and local requirements for permitting and operating along/in roadways.

#### **D.7 DELIVERY SCHEDULE**

The contractor shall provide the following deliverables. Additional deliverables may be required in the scope section of the PWS, but not listed below. This does not relieve the contractor of fulfilling the requirement.

| <b>End Result/Deliverable(s)</b>                                  | <b>Schedule/Milestone(s)</b> | <b>Delivery Location</b> |
|-------------------------------------------------------------------|------------------------------|--------------------------|
| Safety Plan                                                       | Before Work Begins           | Via email to COR and CO  |
| Update Report (status)                                            | Weekly once work begins      | Via email to COR & CO    |
| Completion and certification of credentialed personnel checklist. | Before Work Begins           | Via email to COR and CO  |

#### **D.8 BIOBASED AND SUSTAINABLE PRODUCTS**

The Contractor must comply with the Agricultural Act of 2014; the Food, Conservation and Energy Act of 2008 (FCEA), 7 U.S.C. 8102; the Farm Security and Rural Investment Act of 2002 (FSRIA), 7 U.S.C. 8102; the Federal Acquisition Regulation; Executive Order (EO) 13514, “*Federal Leadership in Environmental, Energy and Economic Performance*,” dated October 5, 2009; EO 13423, “*Strengthening Federal Environmental, Energy, and Transportation Management*,” dated January 24, 2007; and Presidential Memorandum, “*Driving Innovation and Creating Jobs in Rural America through Biobased and Sustainable Product Procurement*,” dated February, 2012 to provide biobased products. All supplies and materials shall be of a type and quantity that conform to applicable Federal specifications and standards, and to the extent feasible and reasonable; include the exclusive use of biobased and recycled products.

The following is a list of categories for bio preferred products that are required for performance of this service contract.

- **2-Cycle Engine Oils – 34% Minimum Biobased Content**
- **Diesel Fuel Additives – 90% Minimum biobased Content**
- **Erosion Control Materials – 77% Minimum biobased Content**
- **Fuel Conditioners – 64% Minimum biobased Content**

- **Gasoline Fuel Additives – 92% Minimum biobased Content**
- **Greases – Truck – 71% Minimum biobased Content**
- **Mobile Equipment Hydraulic Fluids – 44% Minimum biobased Content**
- **Multipurpose Lubricants – 88% Minimum biobased Content**

For more information regarding the Department of Agriculture Biobased Program go to: <http://www.biopreferred.gov>.

**D.9 DEFINITIONS (Not included in Federal Acquisition Regulations)**

Wherever in these provisions, or in other contract documents, the following terms, or pronouns in place of them, are used, the intent and meaning shall be interpreted as follows:

2-Cycle Engine Oils - Lubricants designed for use in 2-cycle engines to provide lubrication, decreased spark plug fouling, reduced deposit formation, and/or reduced engine wear.

Calendar Days - Every day shown on the calendar, Saturdays, Sundays, and holidays included.

Change Order - An order issued to the Contractor by the Contracting Officer, pursuant to the “change” clause included in Section I of this contract, requiring work to be performed, within the general scope of the contract.

Clearing Limits - The limits of clearing as designated on the ground, shown on the drawing, or designated in the Special Project Specifications.

Contract Pay Item - A pay item designated on the bid schedule and described by a specification.

Contracting Officer (CO) - The person executing this contract on behalf of the Government, including any duly appointed successor and authorized representatives of the Contracting Officer acting within the limits of his/her authority.

Contracting Officer's Representative (COR) - The on-site contract administrator for the Contracting Officer. The duties and responsibilities of the Contracting Officer's Representatives are defined below in this Section or in a letter of designation issued by the Contracting Officer.

Contractor - The individual, partnership, joint venture, or corporation undertaking the execution of work under the terms of the contract and acting directly or through their agent, employees, or subcontractors.

Diesel Fuel Additives - (1) Any substance, other than one composed solely of carbon and/or hydrogen, that is intentionally added to diesel fuel (including any added to a motor vehicle's fuel system) and that is not intentionally removed prior to sale or use. (2) Neat biodiesel, also referred to as B100, when used as an additive. Diesel fuel additive does not mean neat biodiesel when used as a fuel or blended biodiesel fuel (e.g., B20).

Erosion Control Materials - Woven or non-woven fiber materials manufactured for use on construction, demolition, or other sites to prevent wind or water erosion of loose earth surfaces, which may be combined with seed and/or fertilizer to promote growth.

Drawings - The approved documents and reproductions of these documents, including plan and profile sheets, cross sections, site plants, diagrams, layouts, schematics, descriptive literature, illustrations, schedules, and similar documents showing details for construction of a facility.

Equipment - All machinery and equipment, together with the necessary supplies for upkeep and maintenance, including tools and apparatus necessary for the proper construction and acceptable completion of the work.

Fuel Conditioners - Products formulated to improve the performance and efficiency of engines by providing benefits such as removing accumulated deposits, increasing lubricity, removing moisture, increasing the cetane number, and/or preventing microbial growths within the fuel system.

Gasoline Fuel Additives - Chemical agents added to gasoline to increase octane levels, improve lubricity, and provide engine cleaning properties to gasoline-fired engines.

Greases – Truck - Lubricants composed of oils thickened to a semisolid or solid consistency using soaps, polymers or other solids, or other thickeners. Lubricants that are designed for use on the fifth wheel of tractor trailer trucks onto which the semi-trailer rests and pivots.

Labor Standards Provisions - Those statutory and regulatory requirements pertaining to the Contractor's employees and employment practices.

Materials - Any substances for use in the construction of the project and its appurtenances.

Mobile Equipment Hydraulic Fluids - Hydraulic fluids formulated for general use in nonstationary equipment, such as tractors, end loaders, or backhoes.

Multipurpose Lubricants - Products designed to provide lubrication under a variety of conditions and in a variety of industrial settings to prevent friction or rust. Greases, which are lubricants composed of oils thickened to a semisolid or solid consistency using soaps, polymers or other solids, or other thickeners, are not included in this item. In addition, task-specific lubricants, such as chain and cable lubricants and gear lubricants, are not included in this item.

Notice of Noncompliance - A written notice from the Contracting Officer's representative or inspector which documents, for the Contractor's attention, specific performance deficiencies.

Remove - Remove from site and dispose of properly.

Right of Way - A general term denoting land, property, or interest therein acquired for or devoted to a road or a construction site.

Schedule of Items - Schedule in the contract which contains a listing and description of construction items, quantities, units of measure, method of measurement, unit price and amount.

Special Project Specifications - Specifications which detail the conditions and requirements peculiar to the individual project, including but not limited to CSI format specifications and additions and revisions to Standard Specifications.

Specifications - A general term applied to all written directions and requirements pertaining to performance of work.

Utility Services - Are services such as electricity, gas, steam, water, and sewage.



#### **D.10 PLACE OF PERFORMANCE AND HOURS OF OPERATION**

National Capital Area (NCA)

HARPERS FERRY NATIONAL HISTORICAL PARK (HAFE)

The contractor is responsible for conducting services between the hours of 0700 – 1730 ET Monday thru Friday, except when the Government facility is closed due to local or national emergencies, administrative closings, or similar Government directed facility closings. The contractor will not be reimbursed when the government facility is closed for the above reasons unless emergency services are requested. Any work performance outside of this schedule requires written approval from the COR. Requests for variations shall be submitted at least three (3) business days before the desired work date.

No work shall occur on the following Federal Holidays:

New Year's Day – January 1st

Martin Luther King Junior's Birthday – Third Monday in January

President's Day – Third Monday in February

Memorial Day – Last Monday in May

Juneteenth – June 19th

Independence Day – July 4th

Labor Day – First Monday in September

Columbus Day – Second Monday in October

Veteran's Day – November 11th

Thanksgiving Day – Fourth Thursday in November

Christmas Day – December 25th

Note - if any of the holidays stated above fall on a Saturday, the Friday before the actual day is the official day the Government takes for the holiday. If the holiday falls on a Sunday, the Monday after the actual day is the official day the Government takes for the holiday. These dates do not account for any other days or shorten days that may be added prior to any of the holidays mentioned above that may be added at the discretion of any Presidential Administration and implemented by the DOI.

#### **D.11 SERVICE SCHEDULE**

The contractor is responsible for conducting routine services, between the hours of 0700 – 1730 hours ET Monday thru Friday, except when the Government facility is closed due to local or national emergencies, administrative closings, or similar Government directed facility closings. The contractor will not be reimbursed when the government facility is closed for the above reasons unless emergency services are requested. The work Schedule will be negotiated at the time of contract award but shall remain the same throughout the contract period unless otherwise authorized by the COR in writing. Additional days or a change in work schedule must be agreed upon by the contractor and the COR in advance.

#### **D.12 THE ROLE OF GOVERNMENT PERSONNEL AND RESPONSIBILITY FOR CONTRACT ADMINISTRATION**

A. Contracting Officer: The Contracting Officer (CO) has the overall responsibility for the administration of this contract. The CO, is authorized to amend, modify, or deviate from the contract.

B. Contracting Officer's Representative (COR): The COR will be designated in writing at the time of award to assist the CO/PA in the day-to-day on-site administration of the contract requirements. The responsibilities of the COR include, but are not limited to;

- (1) Determining the compliance and adequacy of performance by the Contractor in accordance with the terms and conditions of this contract;
- (2) Requesting removal of unsuitable contractor employees;
- (3) Ensuring adequacy of schedule and Quality Control Plan, including changes;
- (4) Ordering re-performance of unacceptable work or performance by other mean, etc.

C. Point-of-Contact (POC): The POC will be used if an official COR cannot be designated at the time of award. The POC will not be designated in writing and will assist the CO/COR in the day-to-day on-site administration of the contract requirements.

#### **D.13 DESIGNATION OF CONTRACTING OFFICERS REPRESENTATIVE (COR)**

- A. The Contracting Officer will designate a certified FAC-COR as the Contracting Officer's Representative (COR) at time of award of a BPA Call. The COR will receive a designated COR Appointment Letter.
- B. The COR is responsible for administering the performance of work under this contract. In no event, however, will any understanding, agreement, modification, change order, or other matter deviating from the terms of this contract be effective or binding upon the Government unless formalized by a proper contractual document executed by the Contracting Officer prior to completion of the contract.
- C. The Contracting Officer should be informed as soon as possible of any actions or inactions by the Contractor or the Government which will change the required delivery or completion times stated in the contract, and the contract will be modified accordingly. (This does not apply to individual assignments which were issued by the Contracting Officer's Representative provided they do not affect the delivery schedule or performance period stated in the contract.)
- D. On all matters that pertain to the contract terms the Contractor must communicate with the Contracting Officer. Whenever, in the opinion of the Contractor, the Contracting Officer's Representative requests effort outside the scope of the contract, the Contractor should so advise the Contracting Officer's Representative. If the Contracting Officer's Representative persists and there still exists a disagreement as to proper contractual coverage, the Contracting Officer should be notified immediately, preferably in writing if time permits. Proceeding with work without proper contractual coverage could result in nonpayment or necessitate submittal of a contract claim.
- E. The COR's major duties and responsibilities are contained in the Forest Service Handbook of Contract Administration. The COR is delegated full authority under this contract except for the following actions which are reserved for the Contracting Officer:
  1. Approve Change Orders and Modifications
  2. Take action to terminate the contract for default or Government convenience.
  3. Make contract adjustments under the Differing Site Conditions clause.
  4. Grant extensions of contract time.
  5. Approve assignment of claims.
  6. Make final decisions under the Disputes clause.
  7. Make final acceptance under the contract.
  8. Make final decisions under the Suspension of Work clause.
  9. Make equitable adjustments.
  10. Authorize change in amount of Payment Retention.
  11. Approve subcontractors.

12. Approve payments with deductions or final payment.
13. Approve use and possession prior to completion.
14. Enforce the warranty provisions.
15. Issue any direction that would result in a possible change to contract requirements.

#### **D.14 POINT OF CONTACT (POC)**

The POC will be used if an official COR cannot be designated at the time of award.

The POC will not be designated in writing and will assist the CO in the day-to-day on-site administration of the contract requirements.

- The POC is responsible for administering the performance of work under this contract. In no event, however, will any understanding, agreement, modification, change order, or other matter deviating from the terms of this contract be effective or binding upon the Government unless formalized by a proper contractual document executed by the CO prior to completion of the contract.
- The CO should be informed as soon as possible of any actions or inactions by the Contractor or the Government which will change the required delivery or completion times stated in the contract, and the contract will be modified accordingly. (This does not apply to individual assignments which were issued by the CO provided they do not affect the delivery schedule or performance period stated in the contract.)
- On all matters that pertain to the contract terms the Contractor must communicate with the CO. Whenever, in the opinion of the Contractor, the POC requests effort outside the scope of the contract, the Contractor should so advise the CO. If the POC persists and there still exists a disagreement as to proper contractual coverage, the CO should be notified immediately, preferably in writing if time permits. Proceeding with work without proper contractual coverage could result in nonpayment or necessitate submittal of a contract claim.
- The POC has limited authority under this contract and responsibilities may include, but are not limited to:
  1. Determining the compliance and adequacy of performance by the Contractor in accordance with the terms and conditions of this contract;
  2. Requesting removal of unsuitable contractor employees;
  3. Ensuring adequacy of schedule and Quality Control Plan, including changes;
  4. Ordering re-performance of unacceptable work or performance by other means, etc.
  5. Approval of invoices and submitted reports.

#### **D.15 CONTRACTOR'S REPRESENTATIVE**

Upon contract award, the Contractor shall provide to the CO, the name, phone number and cellular phone number of the Contractor's representative and an alternate contact who is responsible for overseeing the performance of this contract. This person must be able to make decisions for the company. The Contractor's representative will report to the COR.

#### **D.16 PERIOD OF PERFORMANCE**

The contractor shall begin performance immediately upon award, and continue through until contract completion, cancelation, or termination.

**Base Period:** 14 Sept. 2026 – 26 March 2027.

#### **D.17 TRAVEL**

The contractor shall be responsible for all travel necessary to complete the work described in the Scope of Work.

#### **D.18 LOSS OR DAMAGE**

If due to fault, neglect, dishonesty of the contractor, his agency or employees, loss or damage to government property is incurred during the performance of this task order, the contractor shall be responsible for the same. The government, at its option, in lieu of repayment, may require the contractor to replace at its own expense, all property as directed by the Contracting Officer.

- a. The Contractor shall assume full liability and responsibility for any loss or damage to Government property caused by his/her operations and shall assume full responsibility for any and all damages or claims for damage resulting from injury to persons, property or equipment which might result from any service performed under this task order. The Contractor shall be responsible for the repair or replacement of all damaged government property caused by his/her operations. The Contractor shall notify the Contracting Officer and COR, in writing, within eight (8) hours of any damage occurring and include details related to the extent. Details should include any park operations or assets adversely impacted. Furthermore, the Contractor shall take any immediate actions necessary to prevent further damage (cone/barricade, seal breaches with tarps, etc.). The Government, at its sole discretion, may elect to repair or replace the damaged property, and deduct such costs from monies due.
- b. Historical buildings and other structures and items of cultural/historical significance shall be preserved from damage using appropriate protective measures. In the event of damage, the CO and COR shall be notified immediately by whatever means available to the contractor. The Contractor shall notify the CO and COR in writing within 1 hour of the occurrence.
- c. The contractor shall be issued any necessary key(s) required to complete the work specifications. In the case of task orders, the contractor may already possess the necessary keys. Regardless, no work may begin on the project until all government furnished keys have been accounted for on an official hand receipt, DI-105, (to include keys received previously without a hand receipt). Keys require strict chain-of-custody and control, and the contractor shall have adequate internal control measures to ensure accountability of keys. It is strictly forbidden to duplicate government furnished keys, even if duplicates are destroyed at the end of the project. The contractor shall use keys only when it relates to execution of the specified work and shall at no time relinquish key control to persons that are not employed by the contractor.

#### **D.19 SAFETY**

The work area shall be maintained in a clean and safe condition at all times. All personnel providing service on-site shall have pictured identification and uniform displaying the name of the company. All on-site vehicles will also be marked with the company name. The contractor shall, with the use of barricades, ropes, signs, or audible signals, take all necessary precautions for the protection of the work and safety of the public. Any accident or incident, regarding the work under this task order, shall be reported immediately, in writing, to the Contracting Officer.

- a. The contractor and each of his employees shall work in compliance with all applicable OSHA, Federal, state, and local safety laws, and regulations.

- b. The contractor shall provide and ensure that all personnel at the work site use the proper Personal Protective Equipment (PPE) required by OSHA regulations and ANSI standards. Including ANSI Z133.1 standards and CFR 29 requirements.
- c. The contractor shall take all necessary precautions for safety and shall provide reasonable protection to prevent damage, injury or loss to persons, properties, equipment, and vehicles.
- d. The contractor shall not leave any tools, parts and/or supplies unattended in the public area at any time while performing work.
- e. The contractor shall report public safety hazards noted during the performance of normal duty of care to the COR or NPS staff.
- f. In the event of an emergency the contractor should first call 911 and then immediately call the park's 24 -hour dispatch emergency number – 1-866-677-6677. The dispatch will immediately send out information to all on-duty Rangers.
- g. Contractor personnel operating motor vehicles used in performance of this task order shall have a valid state operator's license and shall operate all motor vehicles in accordance with applicable laws. The contractor's vehicles shall have an identification tag clearly visible while on site.
- h. Avian habitat protection is a paramount concern to the Government and is subject to statutory requirements. The contractor shall follow all federal, state, and local ordinances / statutes for the protection of avian life and wildlife.
- i. The government reserves the right to conduct an audit contractor safety practice during performance. Egregious safety violations or a pattern of repeated minor offences shall result in the issuance of an official stop work and safety review. All concerns shall be provided by the government to the contractor in writing. Work shall not be reinitiated until the contractor has satisfied the government that safety concerns have been mitigated by producing a reasonable mitigation plan grounded in industry standards and best practices.

#### **D.20 GOVERNMENT FURNISHED PROPERTY**

- Government will provide a key to access remote areas of the park.
- Government will provide a thumb drive with tree id information.

#### **D.21 ATTACHMENTS**

- **Attachment 1 – Spreadsheet Data (Site specific tabs) Excel, 4 Tabs**
- **Attachment 2 – Maps (Site specific) PDF, 4 Pages**
- **Attachment 3 – SCA Wage Determination 2015-4285 Rev35, PDF, 11 Pages**

**CLIN STRUCTURE**

Offerors to propose price on each CLIN separately. The Government intends to award all options at time of award; however, all options are not guaranteed until awarded/exercised.

| <b>CLIN</b> | <b>Description</b>         | <b>Price</b> |
|-------------|----------------------------|--------------|
| CLIN 00010  | Base (section 6.1)         | \$**         |
| CLIN 00020  | Bid Option 1 (section 6.2) | \$**         |
| CLIN 00030  | Bid Option 2 (section 6.3) | \$**         |
| CLIN 00030  | Bid Option 3 (section 6.4) | \$**         |

**Total Contract Price with all Options**

**\$\*\* \_\_\_\_\_**

|                                                             |
|-------------------------------------------------------------|
| <b>INSTRUCTIONS TO OFFERORS AND AWARD SELECTION PROCESS</b> |
|-------------------------------------------------------------|

The following provisions apply:

|                     |                                                                                |                 |
|---------------------|--------------------------------------------------------------------------------|-----------------|
| <b>FAR 52.212-1</b> | <b>Instructions to Offerors -- Commercial Products and Commercial Services</b> | <b>Sep 2023</b> |
| <b>FAR 52.212-2</b> | <b>Evaluation – Commercial Products and Commercial Services</b>                | <b>Nov 2021</b> |

**AWARD SELECTION PROCESS:**

The Government intends to make a firm-fixed price purchase order in accordance with FAR Part 13 to the offeror that provides the lowest price offer that meets the technical specifications. The Government may elect to award to a non-lowest price if lower priced quotes are deemed technically unacceptable.

1. Price.
2. Technical: Provide proof of valid arborist certification; Provide a project narrative that demonstrates how the company will successfully meet the needs of the statement of work.

All offers will first be checked for compliance, then sorted by price. Offers will then be checked for acceptability, starting with the lowest priced compliant offer.

**52.212-2 Evaluation—Commercial Products and Commercial Services.**

- (a) The Government will award a contract resulting from this solicitation to the responsible offeror whose offer conforming to the solicitation will be most advantageous to the Government, price and other factors considered. The following factors shall be used to evaluate offers:

Lowest Price Technically Acceptable

- (b) Options. The Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. The Government may determine that an offer is unacceptable if the option prices are significantly unbalanced. Evaluation of options shall not obligate the Government to exercise the option(s).
- (c) A written notice of award or acceptance of an offer, mailed or otherwise furnished to the successful offeror within the time for acceptance specified in the offer, shall result in a binding contract without further action by either party. Before the offer's specified expiration time, the Government may accept an offer (or part of an offer), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.

(End of provision)

**52.212-1 Addendum INSTRUCTIONS TO OFFERORS – Commercial Products and Commercial Services**

Quotes must be in accordance with and in the order detailed in this section. Failure to submit quotes according to the instructions provided within the solicitation may result in the respondent's quote not being considered for award.

All interested parties must be registered in the System for Award Management or SAM at time an offer or quotation is submitted.

The offerors must submit a quote to the Contracting Officer, Robert Adamson via email at [brian\\_thornton@nps.gov](mailto:brian_thornton@nps.gov) no later than **3:00 pm Eastern Standard Time on 8 June 2026.**

Offers must submit the following information requested in a) – e) below:

a) Checklist for quote submittal:

- This page of the solicitation completed as the first page in the package ☐
- All amendments acknowledged using one of the methods set forth in Box 11 of the SF-30 ☐
- Completed Provisions (including 52.204-24, 52.204-26, and others as applicable) ☐

**b) Provide a project narrative that demonstrates how the company will successfully meet the needs of the statement of work (limit to two pages)** ☐

**c) Provide copy of valid arborist certification** ☐

d) Contractor Core Data: Fill below

Offerors Company Name: \_\_\_\_\_

Offerors Unique Entity Identifier (UEI): \_\_\_\_\_

Offerors CAGE Code: \_\_\_\_\_

Offerors POC: \_\_\_\_\_

Offerors Phone/Email: \_\_\_\_\_

e) Price Schedule:

- Fill in the CLIN Structure/ Price Schedule in the section above(p. 21) ☐



|                       |
|-----------------------|
| <b>CLAUSE SECTION</b> |
|-----------------------|

**CLAUSES INCORPORATED BY REFERENCE**

| CLAUSE    | TITLE                                                                     | DATE     |
|-----------|---------------------------------------------------------------------------|----------|
| 52.203-13 | Contractor Code of Business Ethics and Conduct, Alt I                     | Nov 2021 |
| 52.204-13 | System for Award Management Maintenance                                   | Oct 2018 |
| 52.204-19 | Incorporation by Reference of Representations and Certifications          | Dec 2014 |
| 52.212-4  | Contract Terms and Conditions—Commercial Products and Commercial Services | Nov 2023 |
| 52.222-90 | Addressing DEI Discrimination by Federal Contractors                      | Apr 2026 |
| 52.227-17 | Rights in Data – Special Works                                            | Dec 2007 |
| 52.232-39 | Unenforceability of Unauthorized Obligations                              | Jun 2013 |

**CLAUSES INCORPORATED BY FULL TEXT****52.212-5 Contract Terms and Conditions Required to Implement Statutes or Executive Orders- Commercial Products and Commercial Services (Jan 2025) DEVIATION FEB 2025**

(a) The Contractor shall comply with the following Federal Acquisition Regulation (FAR) clauses, which are incorporated in this contract by reference, to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

- (1) 52.203-19, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (Jan 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).
- (2) 52.204-23, Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (Dec 2023) (Section 1634 of Pub. L. 115-91).
- (3) 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (Nov 2021) (Section 889(a)(1)(A) of Pub. L. 115-232).
- (4) 52.209-10, Prohibition on Contracting with Inverted Domestic Corporations (Nov 2015).
- (5) 52.232-40, Providing Accelerated Payments to Small Business Subcontractors (Mar 2023) (31 U.S.C. 3903 and 10 U.S.C. 3801).
- (6) 52.233-3, Protest After Award (Aug 1996) (31 U.S.C. 3553).
- (7) 52.233-4, Applicable Law for Breach of Contract Claim (Oct 2004) (Public Laws 108-77 and 108-78 (19 U.S.C. 3805 note)).

(b) The Contractor shall comply with the FAR clauses in this paragraph (b) that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

*[Contracting Officer check as appropriate.]*

- ☐ (1) 52.203-6, Restrictions on Subcontractor Sales to the Government (Jun 2020), with Alternate I (Nov 2021) (41 U.S.C. 4704 and 10 U.S.C. 4655).
- ☐ (2) 52.203-13, Contractor Code of Business Ethics and Conduct (Nov 2021) (41 U.S.C. 3509)).
- ☐ (3) 52.203-15, Whistleblower Protections under the American Recovery and Reinvestment Act of 2009 (Jun 2010) (Section 1553 of Pub. L. 111-5). (Applies to contracts funded by the American Recovery and Reinvestment Act of 2009.)
- ☒ (4) 52.203-17, Contractor Employee Whistleblower Rights (Nov 2023) (41 U.S.C. 4712); this clause does not apply to contracts of DoD, NASA, the Coast Guard, or applicable elements of the intelligence community—see FAR 3.900(a).
- ☒ (5) 52.204-10, Reporting Executive Compensation and First-Tier Subcontract Awards (Jun 2020) (Pub. L. 109-282) (31 U.S.C. 6101 note).
- ☐ (6) [Reserved].
- ☐ (7) 52.204-14, Service Contract Reporting Requirements (Oct 2016) (Pub. L. 111-117, section 743 of Div. C).
- ☐ (8) 52.204-15, Service Contract Reporting Requirements for Indefinite-Delivery Contracts (Oct 2016) (Pub. L. 111-117, section 743 of Div. C).
- ☒ (9) 52.204-27, Prohibition on a ByteDance Covered Application (Jun 2023) (Section 102 of Division R of Pub. L. 117-328).
- ☐ (10) 52.204-28, Federal Acquisition Supply Chain Security Act Orders—Federal Supply Schedules, Governmentwide Acquisition Contracts, and Multi-Agency Contracts. (Dec 2023) (Pub. L. 115–390, title II).
- ☐ (11)(i) 52.204-30, Federal Acquisition Supply Chain Security Act Orders—Prohibition. (Dec 2023) (Pub. L. 115–390, title II).
- ☐ (ii) Alternate I (Dec 2023) of 52.204–30.
- ☒ (12) 52.209-6, Protecting the Government’s Interest When Subcontracting with Contractors Debarred, Suspended, or Proposed for Debarment. (Nov 2021) (31 U.S.C. 6101 note).
- ☒ (13) 52.209-9, Updates of Publicly Available Information Regarding Responsibility Matters (Oct 2018) (41 U.S.C. 2313).
- ☐ (14) [Reserved].
- ☐ (15) 52.219-3, Notice of HUBZone Set-Aside or Sole-Source Award (Oct 2022) (15 U.S.C. 657a).
- ☐ (16) 52.219-4, Notice of Price Evaluation Preference for HUBZone Small Business Concerns (Oct 2022) (if the offeror elects to waive the preference, it shall so indicate in its offer) (15 U.S.C. 657a).
- ☐ (17) [Reserved]

- ☒ (18) (i) 52.219-6, Notice of Total Small Business Set-Aside (Nov 2020) (15 U.S.C. 644).
- ☐ (ii) Alternate I (Mar 2020) of 52.219-6.
- ☐ (19) (i) 52.219-7, Notice of Partial Small Business Set-Aside (Nov 2020) (15 U.S.C. 644).
- ☐ (ii) Alternate I (Mar 2020) of 52.219-7.
- ☐ (20) 52.219-8, Utilization of Small Business Concerns (Feb 2024) (15 U.S.C. 637(d)(2) and (3)).
- ☐ (21) (i) 52.219-9, Small Business Subcontracting Plan (Sep 2023) (15 U.S.C. 637(d)(4)).
- ☐ (ii) Alternate I (Nov 2016) of 52.219-9.
- ☐ (iii) Alternate II (Nov 2016) of 52.219-9.
- ☐ (iv) Alternate III (Jun 2020) of 52.219-9.
- ☐ (v) Alternate IV (Sep 2023) of 52.219-9.
- ☐ (22) (i) 52.219-13, Notice of Set-Aside of Orders (Mar 2020) (15 U.S.C. 644(r)).
- ☐ (ii) Alternate I (Mar 2020) of 52.219-13.
- ☐ (23) 52.219-14, Limitations on Subcontracting (Oct 2022) (15 U.S.C. 637s).
- ☐ (24) 52.219-16, Liquidated Damages—Subcontracting Plan (Sep 2021) (15 U.S.C. 637(d)(4)(F)(i)).
- ☐ (25) 52.219-27, Notice of Set-Aside for, or Sole-Source Award to, Service-Disabled Veteran-Owned Small Business (SDVOSB) Concerns Eligible Under the SDVOSB Program (Feb 2024) (15 U.S.C. 657f).
- ☒ (26) (i) 52.219-28, Post Award Small Business Program Rerepresentation (Feb 2024) (15 U.S.C. 632(a)(2)).
- ☐ (ii) Alternate I (Mar 2020) of 52.219-28.
- ☐ (27) 52.219-29, Notice of Set-Aside for, or Sole-Source Award to, Economically Disadvantaged Women-Owned Small Business Concerns (Oct 2022) (15 U.S.C. 637(m)).
- ☐ (28) 52.219-30, Notice of Set-Aside for, or Sole-Source Award to, Women-Owned Small Business Concerns Eligible Under the Women-Owned Small Business Program (Oct 2022) (15 U.S.C. 637(m)).
- ☐ (29) 52.219-32, Orders Issued Directly Under Small Business Reserves (Mar 2020) (15 U.S.C. 644(r)).
- ☐ (30) 52.219-33, Nonmanufacturer Rule (Sep 2021) (15 U.S.C. 637(a)(17)).
- ☒ (31) 52.222-3, Convict Labor (Jun 2003) (E.O.11755).
- ☒ (32) 52.222-19, Child Labor-Cooperation with Authorities and Remedies (Jan 2025)

- ☒ (33) 52.222-21, Prohibition of Segregated Facilities (Apr 2015).
- ☒ (34) (i) 52.222-26, Equal Opportunity (Sep 2016) (E.O.11246).
  - ☐ (ii) Alternate I (Feb 1999) of 52.222-26.
- ☐ (35) (i) 52.222-35, Equal Opportunity for Veterans (Jun 2020) (38 U.S.C. 4212).
  - ☐ (ii) Alternate I (Jul 2014) of 52.222-35.
- ☐ (36) (i) 52.222-36, Equal Opportunity for Workers with Disabilities (Jun 2020) (29 U.S.C. 793).
  - ☐ (ii) Alternate I (Jul 2014) of 52.222-36.
- ☐ (37) 52.222-37, Employment Reports on Veterans (Jun 2020) (38 U.S.C. 4212).
- ☒ (38) 52.222-40, Notification of Employee Rights Under the National Labor Relations Act (Dec 2010) (E.O. 13496).
- ☒ (39) (i) 52.222-50, Combating Trafficking in Persons (Nov 2021) (22 U.S.C. chapter 78 and E.O. 13627).
  - ☐ (ii) Alternate I (Mar 2015) of 52.222-50 (22 U.S.C. chapter 78 and E.O. 13627).
- ☐ (40) 52.222-54, Employment Eligibility Verification (Jan 2025) (Executive Order 12989). (Not applicable to the acquisition of commercially available off-the-shelf items or certain other types of commercial products or commercial services as prescribed in FAR 22.1803.)
- ☐ (41) (i) 52.223-9, Estimate of Percentage of Recovered Material Content for EPA–Designated Items (May 2008) (42 U.S.C. 6962(c)(3)(A)(ii)). (Not applicable to the acquisition of commercially available off-the-shelf items.)
  - ☐ (ii) Alternate I (May 2008) of 52.223-9 (42 U.S.C. 6962(i)(2)(C)). (Not applicable to the acquisition of commercially available off-the-shelf items.)
- ☐ (42) 52.223-11, Ozone-Depleting Substances and High Global Warming Potential Hydrofluorocarbons (May 2024) ( 42 U.S.C. 7671, et seq.).
- ☐ (43) 52.223-12, Maintenance, Service, Repair, or Disposal of Refrigeration Equipment and Air Conditioners (May 2024) (42 U.S.C. 7671, et seq.).
- ☐ (44) 52.223-20, Aerosols (May 2024) (42 U.S.C. 7671, et seq.).
- ☐ (45) 52.223-21, Foams (May 2024) (42 U.S.C. 7671, et seq.).
- ☐ (46) 52.223-23, Sustainable Products and Services (May 2024) (DEVIATION FEB 2025) (7 U.S.C. 8102, 42 U.S.C. 6962, 42 U.S.C. 8259b, and 42 U.S.C. 7671l).
- ☐ (47) (i) 52.224-3 Privacy Training (Jan 2017) (5 U.S.C. 552 a).
  - ☐ (ii) Alternate I (Jan 2017) of 52.224-3.

- ☐ (48) (i) 52.225-1, Buy American-Supplies (Oct 2022) (41 U.S.C. chapter 83).
- ☐ (ii) Alternate I (Oct 2022) of 52.225-1.
- ☐ (49) (i) 52.225-3, Buy American-Free Trade Agreements-Israeli Trade Act (Nov 2023) (19 U.S.C. 3301 note, 19 U.S.C. 2112 note, 19 U.S.C. 3805 note, 19 U.S.C. 4001 note, 19 U.S.C. chapter 29 (sections 4501-4732), Public Law 103-182, 108-77, 108-78, 108-286, 108-302, 109-53, 109-169, 109-283, 110-138, 112-41, 112-42, and 112-43).
- ☐ (ii) Alternate I [Reserved].
- ☐ (iii) Alternate II (Jan 2025) of 52.225-3.
- ☐ (iv) Alternate III (Feb 2024) of 52.225-3.
- ☐ (v) Alternate IV (Oct 2022) of 52.225-3.
- ☐ (50) 52.225-5, Trade Agreements (Nov 2023) (19 U.S.C. 2501, et seq., 19 U.S.C. 3301 note).
- ☒ (51) 52.225-13, Restrictions on Certain Foreign Purchases (Feb 2021) (E.O.'s, proclamations, and statutes administered by the Office of Foreign Assets Control of the Department of the Treasury).
- ☐ (52) 52.225-26, Contractors Performing Private Security Functions Outside the United States (Oct 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).
- ☐ (53) 52.226-4, Notice of Disaster or Emergency Area Set-Aside (Nov 2007) (42 U.S.C. 5150).
- ☐ (54) 52.226-5, Restrictions on Subcontracting Outside Disaster or Emergency Area (Nov 2007) (42 U.S.C. 5150).
- ☒ (55) 52.226-8, Encouraging Contractor Policies to Ban Text Messaging While Driving (May 2024) (E.O. 13513).
- ☐ (56) 52.229-12, Tax on Certain Foreign Procurements (Feb 2021).
- ☐ (57) 52.232-29, Terms for Financing of Purchases of Commercial Products and Commercial Services (Nov 2021) (41 U.S.C. 4505, 10 U.S.C. 3805).
- ☐ (58) 52.232-30, Installment Payments for Commercial Products and Commercial Services (Nov 2021) (41 U.S.C. 4505, 10 U.S.C. 3805).
- ☒ (59) 52.232-33, Payment by Electronic Funds Transfer-System for Award Management (Oct 2018) (31 U.S.C. 3332).
- ☐ (60) 52.232-34, Payment by Electronic Funds Transfer-Other than System for Award Management (Jul 2013) (31 U.S.C. 3332).
- ☐ (61) 52.232-36, Payment by Third Party (May 2014) (31 U.S.C. 3332).
- ☐ (62) 52.239-1, Privacy or Security Safeguards (Aug 1996) (5 U.S.C. 552a).

X   (63) 52.240-1, Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act-Covered Foreign Entities (Nov 2024) (Sections 1821-1826, Pub. L. 118-31, 41 U.S.C. 3901 note prec.).

       (64) 52.242-5, Payments to Small Business Subcontractors (Jan 2017) (15 U.S.C. 637(d)(13)).

       (65) (i) 52.247-64, Preference for Privately Owned U.S.-Flag Commercial Vessels (Nov 2021) (46 U.S.C. 55305 and 10 U.S.C. 2631).

       (ii) Alternate I (Apr 2003) of 52.247-64.

       (iii) Alternate II (Nov 2021) of 52.247-64.

(c) The Contractor shall comply with the FAR clauses in this paragraph (c), applicable to commercial services, that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

*[Contracting Officer check as appropriate.]*

       (1) 52.222-41, Service Contract Labor Standards (Aug 2018) (41 U.S.C. chapter 67).

       (2) 52.222-42, Statement of Equivalent Rates for Federal Hires (May 2014) (29 U.S.C. 206 and 41 U.S.C. chapter 67).

       (3) 52.222-43, Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (Multiple Year and Option Contracts) (Aug 2018) (29 U.S.C. 206 and 41 U.S.C. chapter 67).

       (4) 52.222-44, Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (May 2014) (29 U.S.C. 206 and 41 U.S.C. chapter 67).

       (5) 52.222-51, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment-Requirements (May 2014) (41 U.S.C. chapter 67).

       (6) 52.222-53, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Requirements (May 2014) (41 U.S.C. chapter 67).

       (7) 52.222-55, Minimum Wages for Contractor Workers Under Executive Order 14026 (Jan 2022).

       (8) 52.222-62, Paid Sick Leave Under Executive Order 13706 (Jan 2022) (E.O. 13706).

       (9) 52.226-6, Promoting Excess Food Donation to Nonprofit Organizations (Jun 2020) (42 U.S.C. 1792).

       (10) 52.247-69, Reporting Requirement for U.S.-Flag Air Carriers Regarding Training to Prevent Human Trafficking (Jan 2025) (49 U.S.C. 40118(g)).

(d) Comptroller General Examination of Record. The Contractor shall comply with the provisions of this paragraph (d) if this contract was awarded using other than sealed bid, is in excess of the simplified

acquisition threshold, as defined in FAR 2.101, on the date of award of this contract, and does not contain the clause at 52.215-2, Audit and Records-Negotiation.

- (1) The Comptroller General of the United States, or an authorized representative of the Comptroller General, shall have access to and right to examine any of the Contractor's directly pertinent records involving transactions related to this contract.
- (2) The Contractor shall make available at its offices at all reasonable times the records, materials, and other evidence for examination, audit, or reproduction, until 3 years after final payment under this contract or for any shorter period specified in FAR subpart 4.7, Contractor Records Retention, of the other clauses of this contract. If this contract is completely or partially terminated, the records relating to the work terminated shall be made available for 3 years after any resulting final termination settlement. Records relating to appeals under the disputes clause or to litigation or the settlement of claims arising under or relating to this contract shall be made available until such appeals, litigation, or claims are finally resolved.
- (3) As used in this clause, records include books, documents, accounting procedures and practices, and other data, regardless of type and regardless of form. This does not require the Contractor to create or maintain any record that the Contractor does not maintain in the ordinary course of business or pursuant to a provision of law.

(e)

- (1) Notwithstanding the requirements of the clauses in paragraphs (a), (b), (c), and (d) of this clause, the Contractor is not required to flow down any FAR clause, other than those in this paragraph (e)(1), in a subcontract for commercial products or commercial services. Unless otherwise indicated below, the extent of the flow down shall be as required by the clause-
  - (i) 52.203-13, Contractor Code of Business Ethics and Conduct (Nov 2021) (41 U.S.C. 3509).
  - (ii) 52.203-17, Contractor Employee Whistleblower Rights (Nov 2023) (41 U.S.C. 4712).
  - (iii) 52.203-19, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (Jan 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).
  - (iv) 52.204-23, Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab and Other Covered Entities (Nov 2021) (Section 1634 of Pub. L. 115-91).
  - (v) 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (Nov 2021) (Section 889(a)(1)(A) of Pub. L. 115-232).
  - (vi) 52.204-27, Prohibition on a ByteDance Covered Application (Jun 2023) (Section 102 of Division R of Pub. L. 117-328).
  - (vii)
    - (A) 52.204-30, Federal Acquisition Supply Chain Security Act Orders—Prohibition. (Dec 2023) ( Pub. L. 115-390, title II).

- (B) Alternate I (Dec 2023) of 52.204-30.
- (viii) 52.219-8, Utilization of Small Business Concerns (Feb 2024) (15 U.S.C. 637(d)(2) and (3)), in all subcontracts that offer further subcontracting opportunities. If the subcontract (except subcontracts to small business concerns) exceeds the applicable threshold specified in FAR 19.702(a) on the date of subcontract award, the subcontractor must include 52.219-8 in lower tier subcontracts that offer subcontracting opportunities.
- (ix) 52.222-21, Prohibition of Segregated Facilities (Apr 2015).
- (x) 52.222-26, Equal Opportunity (Sep 2015) (E.O.11246).
- (xi) 52.222-35, Equal Opportunity for Veterans (Jun 2020) (38 U.S.C. 4212).
- (xii) 52.222-36, Equal Opportunity for Workers with Disabilities (Jun 2020) (29 U.S.C. 793).
- (xiii) 52.222-37, Employment Reports on Veterans (Jun 2020) (38 U.S.C. 4212).
- (xiv) 52.222-40, Notification of Employee Rights Under the National Labor Relations Act (Dec 2010) (E.O. 13496). Flow down required in accordance with paragraph (f) of FAR clause 52.222-40.
- (xv) 52.222-41, Service Contract Labor Standards (Aug 2018) (41 U.S.C. chapter 67).
- (xvi)
  - (A) 52.222-50, Combating Trafficking in Persons (Nov 2021) (22 U.S.C. chapter 78 and E.O 13627).
  - (B) Alternate I (Mar 2015) of 52.222-50 (22 U.S.C. chapter 78 and E.O. 13627).
- (xvii) 52.222-51, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment-Requirements (May 2014) (41 U.S.C. chapter 67).
- (xviii) 52.222-53, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Requirements (May 2014) (41 U.S.C. chapter 67).
- (xix) 52.222-54, Employment Eligibility Verification (Jan 2025) (E.O. 12989).
- (xx) 52.222-55, Minimum Wages for Contractor Workers Under Executive Order 14026 (Jan 2022).
- (xxi) 52.222-62, Paid Sick Leave Under Executive Order 13706 (Jan 2022) (E.O. 13706).
- (xxii) (A) 52.224-3, Privacy Training (Jan 2017) (5 U.S.C. 552a).  
(B) Alternate I (Jan 2017) of 52.224-3.
- (xxiii) 52.225-26, Contractors Performing Private Security Functions Outside the United States (Oct 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).



- (xxiv) 52.226-6, Promoting Excess Food Donation to Nonprofit Organizations (Jun 2020) (42 U.S.C. 1792). Flow down required in accordance with paragraph (e) of FAR clause 52.226-6.
  - (xxv) 52.232-40, Providing Accelerated Payments to Small Business Subcontractors (Mar 2023) (31 U.S.C. 3903 and 10 U.S.C. 3801). Flow down required in accordance with paragraph (c) of 52.232-40.
  - (xxvi) 52.240-1, Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act-Covered Foreign Entities (Nov 2024) (Sections 1821-1826, Pub. L. 118-31, 41 U.S.C. 3901 note prec.).
  - (xxvii) 52.247-64, Preference for Privately Owned U.S.-Flag Commercial Vessels (Nov 2021) (46 U.S.C. 55305 and 10 U.S.C. 2631). Flow down required in accordance with paragraph (d) of FAR clause 52.247-64.
- (2) While not required, the Contractor may include in its subcontracts for commercial products and commercial services a minimal number of additional clauses necessary to satisfy its contractual obligations.

(End of clause)

#### **52.217-4 Evaluation of Options Exercised at Time of Contract Award**

Except when it is determined in accordance with FAR 17.206(b) not to be in the Government's best interests, the Government will evaluate the total price for the basic requirement together with any option(s) exercised at the time of award.

(End of provision)

#### **52.252-2 Clauses Incorporated by Reference (Feb 1998)**

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this address: [www.acquisition.gov](http://www.acquisition.gov)

(End of clause)

#### **1452.201-70 Authorities and delegations (Sep 2011)**

- (a) The Contracting Officer is the only individual authorized to enter into or terminate this contract, modify any term or condition of this contract, waive any requirement of this contract, or accept nonconforming work.
- (b) The Contracting Officer will designate a Contracting Officer's Representative (COR) at time of award. The COR will be responsible for technical monitoring of the contractor's performance and deliveries. The COR will be appointed in writing, and a copy of the appointment will be furnished to the Contractor. Changes to this delegation will be made by written changes to the existing appointment or by issuance of a new appointment.
- (c) The COR is not authorized to perform, formally or informally, any of the following actions:

(1) Promise, award, agree to award, or execute any contract, contract modification, or notice of intent that changes or may change this contract;

(2) Waive or agree to modification of the delivery schedule;

(3) Make any final decision on any contract matter subject to the Disputes Clause;

(4) Terminate, for any reason, the Contractor's right to proceed;

(5) Obligate in any way, the payment of money by the Government.

(d) The Contractor shall comply with the written or oral direction of the Contracting Officer or authorized representative(s) acting within the scope and authority of the appointment memorandum. The Contractor need not proceed with direction that it considers to have been issued without proper authority. The Contractor shall notify the Contracting Officer in writing, with as much detail as possible, when the COR has taken an action or has issued direction (written or oral) that the Contractor considers to exceed the COR's appointment, within 3 days of the occurrence. Unless otherwise provided in this contract, the Contractor assumes all costs, risks, liabilities, and consequences of performing any work it is directed to perform that falls within any of the categories defined in paragraph (c) prior to receipt of the Contracting Officer's response issued under paragraph (e) of this clause.

(e) The Contracting Officer shall respond in writing within 30 days to any notice made under paragraph (d) of this clause. A failure of the parties to agree upon the nature of a direction, or upon the contract action to be taken with respect thereto, shall be subject to the provisions of the Disputes clause of this contract.

(f) The Contractor shall provide copies of all correspondence to the Contracting Officer and the COR.

(g) Any action(s) taken by the Contractor, in response to any direction given by any person acting on behalf of the Government or any Government official other than the Contracting Officer or the COR acting within his or her appointment, shall be at the Contractor's risk.

(End of clause)

#### **Electronic Invoicing and Payment Requirements - Invoice Processing Platform (IPP) (Feb 2021)**

Payment requests must be submitted electronically through the U. S. Department of the Treasury's Invoice Processing Platform System (IPP).

"Payment request" means any request for contract financing payment or invoice payment by the Contractor. To constitute a proper invoice, the payment request must comply with the requirements identified in the applicable Prompt Payment clause included in the contract, or the clause 52.212-4 Contract Terms and Conditions - Commercial Items included in commercial item contracts. The IPP website address is: <https://www.ipp.gov>.

Under this contract, the following documents are required to be submitted as an attachment to the IPP invoice: none

The Contractor must use the IPP website to register access and use IPP for submitting requests for payment. The Contractor Government Business Point of Contact (as listed in SAM) will receive enrollment instructions via email from the Federal Reserve Bank of St. Louis (FRBSTL) within 3 - 5 business days of the contract award date. Contractor assistance with enrollment can be obtained by contacting the IPP Production Helpdesk via email [IPPCustomerSupport@fiscal.treasury.gov](mailto:IPPCustomerSupport@fiscal.treasury.gov) or phone (866) 973-3131.

If the Contractor is unable to comply with the requirement to use IPP for submitting invoices for payment, the Contractor must submit a waiver request in writing to the Contracting Officer with its proposal or quotation.

(End of Local Clause)

|                           |
|---------------------------|
| <b>PROVISIONS SECTION</b> |
|---------------------------|

**SOLICITATION PROVISIONS INCORPORATED BY REFERENCE**

| PROVISION     | TITLE                                                                                                                                       | DATE     |
|---------------|---------------------------------------------------------------------------------------------------------------------------------------------|----------|
| FAR 52.203-18 | Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements - Representation                                         | Jan 2017 |
| FAR 52.204-7  | System for Award Management                                                                                                                 | Nov 2024 |
| FAR 52.204-16 | Commercial and Government Entity Code Reporting                                                                                             | Aug 2020 |
| FAR 52.204-17 | Ownership or Control of Offeror                                                                                                             | Aug 2020 |
| FAR 52.204-20 | Predecessor of Offeror                                                                                                                      | Aug 2020 |
| FAR 52.204-22 | Alternative Line Item Proposal                                                                                                              | Jan 2017 |
| FAR 52.204-29 | Federal Acquisition Supply Chain Security Act Orders—Representation and Disclosures                                                         | Dec 2023 |
| FAR 52.209-2  | Prohibition on Contracting with Inverted Domestic Corporations - Representation                                                             | Nov 2015 |
| FAR 52.212-1  | Instructions to Offerors-Commercial Products and Commercial Services                                                                        | Sep 2023 |
| FAR 52.225-25 | Prohibition on Contracting with Entities Engaging in Certain Activities or Transactions Relating to Iran – Representation and Certification | Jun 2020 |
| FAR 52.252-5  | Authorized Deviations in Provisions                                                                                                         | Nov 2020 |
| FAR 52.203-18 | Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements - Representation                                         | Jan 2017 |
| FAR 52.252-5  | Authorized Deviations in Provisions                                                                                                         | Nov 2020 |

**SOLICITATION PROVISIONS INCORPORATED BY FULL TEXT****52.204-24 Representation Regarding Certain Telecommunications and Video Surveillance Services or Equipment (Nov 2021)**

The Offeror shall not complete the representation at paragraph (d)(1) of this provision if the Offeror has represented that it "does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract , subcontract , or other contractual instrument" in paragraph (c)(1) in the provision at [52.204-26](#), Covered Telecommunications Equipment or Services —Representation, or in paragraph (v)(2)(i) of the provision at [52.212-3](#), Offeror Representations and Certifications-Commercial Products or Commercial Services. The Offeror shall not complete the representation in paragraph (d)(2) of this provision if the Offeror has represented that it "does not use covered telecommunications equipment or services , or any equipment , system, or service that uses covered telecommunications equipment or services " in paragraph (c)(2) of the provision at [52.204-26](#), or in paragraph (v)(2)(ii) of the provision at [52.212-3](#).

(a) Definitions. As used in this provision—

Backhaul , covered telecommunications equipment or services , critical technology , interconnection arrangements , reasonable inquiry , roaming , *and* substantial or essential component have the meanings provided in the clause [52.204-25](#), Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment .

(b) *Prohibition.*

(1) Section 889(a)(1)(A) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2019, from procuring or obtaining, or extending or renewing a contract to procure or obtain,

any equipment , system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. Nothing in the prohibition shall be construed to—

(i) Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(2) Section 889(a)(1)(B) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2020, from entering into a contract or extending or renewing a contract with an entity that uses any equipment , system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. This prohibition applies to the use of covered telecommunications equipment or services, regardless of whether that use is in performance of work under a Federal contract. Nothing in the prohibition shall be construed to—

(i) Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(c) *Procedures.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) ( <https://www.sam.gov>) for entities excluded from receiving federal awards for "covered telecommunications equipment or services ".

(d) *Representation.* The Offeror represents that—

(1) It ☐ will, ☐ will not provide covered telecommunications equipment or services to the Government in the performance of any contract, subcontract or other contractual instrument resulting from this solicitation. The Offeror shall provide the additional disclosure information required at paragraph (e)(1) of this section if the Offeror responds "will" in paragraph (d)(1) of this section; and

(2) After conducting a reasonable inquiry, for purposes of this representation, the Offeror represents that—

It ☐ does, ☐ does not use covered telecommunications equipment or services, or use any equipment, system, or service that uses covered telecommunications equipment or services. The Offeror shall provide the additional disclosure information required at paragraph (e)(2) of this section if the Offeror responds "does" in paragraph (d)(2) of this section.

(e) *Disclosures.*

(1) Disclosure for the representation in paragraph (d)(1) of this provision. If the Offeror has responded "will" in the representation in paragraph (d)(1) of this provision, the Offeror shall provide the following information as part of the offer:

(i) For covered equipment —

(A) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the original equipment manufacturer (OEM) or a distributor, if known);

(B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and

(C) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

(ii) For covered services—

(A) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or

(B) If not associated with maintenance, the Product Service Code (PSC) of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

(2) Disclosure for the representation in paragraph (d)(2) of this provision. If the Offeror has responded "does" in the representation in paragraph (d)(2) of this provision, the Offeror shall provide the following information as part of the offer:

(i) For covered equipment —

(A) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known);

(B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and

(C) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

(ii) For covered services—

(A) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or

(B) If not associated with maintenance, the PSC of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

(End of Provision)

#### **52.204-26 Covered Telecommunications Equipment or Services-Representation (Oct 2020)**

(a) Definitions. As used in this provision, "covered telecommunications equipment or services " and "reasonable inquiry " have the meaning provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

(b) Procedures. The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for "covered telecommunications equipment or services ".

(c) (1) Representation. The Offeror represents that it ☐ does, ☐ does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument.

(2) After conducting a reasonable inquiry for purposes of this representation, the offeror represents that it ☐ does, ☐ does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services.

(End of Provision)

#### **52.209-11 Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law (Feb 2016)**

(a) As required by sections 744 and 745 of Division E of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235), and similar provisions, if contained in subsequent appropriations acts, the Government will not enter into a contract with any corporation that—

(1) Has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability, where the awarding agency is aware of the unpaid tax liability, unless an agency has considered suspension or debarment of the corporation and made a determination that suspension or debarment is not necessary to protect the interests of the Government; or

(2) Was convicted of a felony criminal violation under any Federal law within the preceding 24 months, where the awarding agency is aware of the conviction, unless an agency has considered suspension or debarment of the corporation and made a determination that this action is not necessary to protect the interests of the Government.

(b) The Offeror represents that—

(1) It is ☐ is not ☐ a corporation that has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not

being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability; and

(2) It is ☐ is not ☐ a corporation that was convicted of a felony criminal violation under a Federal law within the preceding 24 months.

(End of provision)

**52.212-3 Offeror Representation and Certification – Commercial Products and Commercial Services (May 2024) DEVIATION FEB 2025**

The Offeror shall complete only paragraph (b) of this provision if the Offeror has completed the annual representations and certification electronically in the System for Award Management (SAM) accessed through <https://www.sam.gov>. If the Offeror has not completed the annual representations and certifications electronically, the Offeror shall complete only paragraphs (c) through (v) of this provision.

(a) *Definitions.* As used in this provision—

*Covered telecommunications* equipment or services has the meaning provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

*Economically disadvantaged women-owned small business (EDWOSB) concern* means that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States and who are economically disadvantaged in accordance with 13 CFR part 127, and the concern is certified by SBA or an approved third-party certifier in accordance with 13 CFR 127.300. It automatically qualifies as a women-owned small business eligible under the WOSB Program.

Forced or indentured child labor means all work or service—

- (1) Exacted from any person under the age of 18 under the menace of any penalty for its nonperformance and for which the worker does not offer himself voluntarily; or
- (2) Performed by any person under the age of 18 pursuant to a contract the enforcement of which can be accomplished by process or penalties.

*Highest-level owner* means the entity that owns or controls an immediate owner of the offeror, or that owns or controls one or more entities that control an immediate owner of the offeror. No entity owns or exercises control of the highest level owner.

*Immediate owner* means an entity, other than the offeror, that has direct control of the offeror. Indicators of control include, but are not limited to, one or more of the following: ownership or interlocking management, identity of interests among family members, shared facilities and equipment, and the common use of employees.

*Inverted domestic corporation*, means a foreign incorporated entity that meets the definition of an inverted domestic corporation under [6 U.S.C. 395\(b\)](#), applied in accordance with the rules and definitions of [6 U.S.C. 395\(c\)](#).

*Manufactured end product* means any end product in product and service codes (PSCs) 1000-9999, except—

- (1) PSC 5510, Lumber and Related Basic Wood Materials;
- (2) Product or Service Group (PSG) 87, Agricultural Supplies;
- (3) PSG 88, Live Animals;
- (4) PSG 89, Subsistence;
- (5) PSC 9410, Crude Grades of Plant Materials;
- (6) PSC 9430, Miscellaneous Crude Animal Products, Inedible;
- (7) PSC 9440, Miscellaneous Crude Agricultural and Forestry Products;
- (8) PSC 9610, Ores;
- (9) PSC 9620, Minerals, Natural and Synthetic; and
- (10) PSC 9630, Additive Metal Materials.

*Place of manufacture* means the place where an end product is assembled out of components, or otherwise made or processed from raw materials into the finished product that is to be provided to the Government. If a product is disassembled and reassembled, the place of reassembly is not the place of manufacture.

*Predecessor* means an entity that is replaced by a successor and includes any predecessors of the predecessor.

*Reasonable inquiry* has the meaning provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

*Restricted business operations* means business operations in Sudan that include power production activities, mineral extraction activities, oil-related activities, or the production of military equipment, as those terms are defined in the Sudan Accountability and Divestment Act of 2007 (Pub. L. 110-174). Restricted business operations do not include business operations that the person (as that term is defined in Section 2 of the Sudan Accountability and Divestment Act of 2007) conducting the business can demonstrate—

- (1) Are conducted under contract directly and exclusively with the regional government of southern Sudan;
- (2) Are conducted pursuant to specific authorization from the Office of Foreign Assets Control in the Department of the Treasury, or are expressly exempted under Federal law from the requirement to be conducted under such authorization;
- (3) Consist of providing goods or services to marginalized populations of Sudan;
- (4) Consist of providing goods or services to an internationally recognized peacekeeping force or humanitarian organization;
- (5) Consist of providing goods or services that are used only to promote health or education; or
- (6) Have been voluntarily suspended. “Sensitive technology”—

*Sensitive technology*—



- (1) Means hardware, software, telecommunications equipment, or any other technology that is to be used specifically—
  - (i) To restrict the free flow of unbiased information in Iran; or
  - (ii) To disrupt, monitor, or otherwise restrict speech of the people of Iran; and
- (2) Does not include information or informational materials the export of which the President does not have the authority to regulate or prohibit pursuant to section 203(b)(3) of the International Emergency Economic Powers Act (50 U.S.C. 1702(b)(3)).

*Service-disabled veteran-owned small business (SDVOSB) concern* means a small business concern—

- (1)
  - (i) Not less than 51 percent of which is owned and controlled by one or more service-disabled veterans or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more service-disabled veterans; and
  - (ii) The management and daily business operations of which are controlled by one or more service-disabled veterans or, in the case of a service-disabled veteran with permanent and severe disability, the spouse or permanent caregiver of such veteran; or
- (2) A small business concern eligible under the SDVOSB Program in accordance with 13 CFR part 128 (see subpart 19.14).
- (3) Service-disabled veteran, as used in this definition, means a veteran as defined in 38 U.S.C. 101(2), with a disability that is service connected, as defined in 38 U.S.C. 101(16), and who is registered in the Beneficiary Identification and Records Locator Subsystem, or successor system that is maintained by the Department of Veterans Affairs' Veterans Benefits Administration, as a service-disabled veteran.

*Service-disabled veteran-owned small business (SDVOSB) concern eligible under the SDVOSB Program* means an SDVOSB concern that—

- (1) Effective January 1, 2024, is designated in the System for Award Management (SAM) as certified by the Small Business Administration (SBA) in accordance with 13 CFR 128.300; or
- (2) Has represented that it is an SDVOSB concern in SAM and submitted a complete application for certification to SBA on or before December 31, 2023.

*Service-disabled veteran-owned small business (SDVOSB) Program* means a program that authorizes contracting officers to limit competition, including award on a sole-source basis, to SDVOSB concerns eligible under the SDVOSB Program.

*Small business concern*—

(1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in its field of operation, and qualified as a small business under the criteria in 13 CFR part 121 and size standards in this solicitation.

(2) Affiliates, as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.

*Small disadvantaged business concern*, consistent with 13 CFR 124.1001, means a small business concern under the size standard applicable to the acquisition, that—

(1) Is at least 51 percent unconditionally and directly owned (as defined at 13 CFR 124.105) by—

(i) One or more socially disadvantaged (as defined at 13 CFR 124.103) and economically disadvantaged (as defined at 13 CFR 124.104) individuals who are citizens of the United States; and

(ii) Each individual claiming economic disadvantage has a net worth not exceeding the threshold at 13 CFR 124.104(c)(2) after taking into account the applicable exclusions set forth at 13 CFR 124.104(c)(2); and

(2) The management and daily business operations of which are controlled (as defined at 13 CFR 124.106) by individuals, who meet the criteria in paragraphs (1)(i) and (ii) of this definition.

*Subsidiary* means an entity in which more than 50 percent of the entity is owned—

(1) Directly by a parent corporation; or

(2) Through another subsidiary of a parent corporation

*Successor* means an entity that has replaced a predecessor by acquiring the assets and carrying out the affairs of the predecessor under a new name (often through acquisition or merger). The term "successor" does not include new offices/divisions of the same company or a company that only changes its name. The extent of the responsibility of the successor for the liabilities of the predecessor may vary, depending on State law and specific circumstances.

*Veteran-owned small business concern* means a small business concern—

(1) Not less than 51 percent of which is owned and controlled by one or more veterans (as defined at 38 U.S.C. 101(2)) or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more veterans; and

(2) The management and daily business operations of which are controlled by one or more veterans.

*Women-owned business concern* means a concern which is at least 51 percent owned by one or more women; or in the case of any publicly owned business, at least 51 percent of its stock is owned by one or more women; and whose management and daily business operations are controlled by one or more women

*Women-owned small business concern* means a small business concern—

- (1) That is at least 51 percent owned by one or more women; or, in the case of any publicly owned business, at least 51 percent of the stock of which is owned by one or more women; and
- (2) Whose management and daily business operations are controlled by one or more women.

*Women-owned small business (WOSB) concern* eligible under the WOSB Program (in accordance with 13 CFR part 127), means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States, and the concern is certified by SBA or an approved third-party certifier in accordance with 13 CFR 127.300.

(b)

(1) Annual Representations and Certifications. Any changes provided by the Offeror in paragraph (b)(2) of this provision do not automatically change the representations and certifications in SAM.

(2) The offeror has completed the annual representations and certifications electronically in SAM accessed through <http://www.sam.gov>. After reviewing SAM information, the Offeror verifies by submission of this offer that the representations and certifications currently posted electronically at FAR 52.212-3, Offeror Representations and Certifications-Commercial Products and Commercial Services, have been entered or updated in the last 12 months, are current, accurate, complete, and applicable to this solicitation (including the business size standard(s) applicable to the NAICS code(s) referenced for this solicitation), at the time this offer is submitted and are incorporated in this offer by reference (see FAR 4.1201), except for paragraphs \_\_\_\_.

*[Offeror to identify the applicable paragraphs at (c) through (v) of this provision that the offeror has completed for the purposes of this solicitation only, if any.]*

*These amended representation(s) and/or certification(s) are also incorporated in this offer and are current, accurate, and complete as of the date of this offer.*

*Any changes provided by the offeror are applicable to this solicitation only, and do not result in an update to the representations and certifications posted electronically on SAM.]*

(c) Offerors must complete the following representations when the resulting contract is for supplies to be delivered or services to be performed in the United States or its outlying areas, or when the contracting officer has applied part 19 in accordance with 19.000(b)(1)(ii). Check all that apply.

(1) Small business concern. The offeror represents as part of its offer that—

(i) It ☐ is, ☐ is not a small business concern; or

(ii) It ☐ is, ☐ is not a small business joint venture that complies with the requirements of 13 CFR 121.103(h) and 13 CFR 125.8(a) and (b). [ The offeror shall enter the name and unique entity identifier of each party to the joint venture: \_\_\_\_\_.]

(2) Veteran-owned small business concern. [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents as part of its offer that it ☐ is, ☐ is not a veteran-owned small business concern.

(3) SDVOSB concern. [Complete only if the offeror represented itself as a veteran-owned small business concern in paragraph (c)(2) of this provision.] The offeror represents that it ☐ is, ☐ is not an SDVOSB concern.

(4) SDVOSB concern joint venture eligible under the SDVOSB Program. The offeror represents that it ☐ is, ☐ is not an SDVOSB joint venture eligible under the SDVOSB Program that complies with the requirements of 13 CFR 128.402. [Complete only if the offeror represented itself as an SDVOSB concern in paragraph (c)(3) of this provision.] [The offeror shall enter the name and unique entity identifier of each party to the joint venture: \_\_\_\_\_.]

(5) Small disadvantaged business concern. [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents that it ☐ is, ☐ is not a small disadvantaged business concern as defined in 13 CFR 124.1001.

(6) Women-owned small business concern. [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents that it ☐ is, ☐ is not a women-owned small business concern.

(7) WOSB joint venture eligible under the WOSB Program. The offeror represents that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [ The offeror shall enter the name and unique entity identifier of each party to the joint venture: \_\_\_\_\_.]

(8) Economically disadvantaged women-owned small business (EDWOSB) joint venture. The offeror represents that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: \_\_\_\_\_.]

**Note to paragraphs (c)(9) and (10):** Complete paragraphs (c)(9) and (10) only if this solicitation is expected to exceed the simplified acquisition threshold.

(9) Women-owned business concern (other than small business concern). [Complete only if the offeror is a women-owned business concern and did not represent itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents that it ☐ is a women-owned business concern.

(10) Tie bid priority for labor surplus area concerns. If this is an invitation for bid, small business offerors may identify the labor surplus areas in which costs to be incurred on account of manufacturing or production (by offeror or first-tier subcontractors) amount to more than 50 percent of the contract price:\_\_\_\_\_

(11) HUBZone small business concern. [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents, as part of its offer, that—

(i) It ☐ is, ☐ is not a HUBZone small business concern listed, on the date of this representation, as having been certified by SBA as a HUBZone small business concern in the Dynamic Small Business Search and SAM, and will attempt to maintain an employment rate of HUBZone residents of 35 percent of its employees during performance of a HUBZone contract (see 13 CFR 126.200(e)(1)); and

(ii) It ☐ is, ☐ is not a HUBZone joint venture that complies with the requirements of 13 CFR 126.616(a) through (c). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: \_\_\_\_\_.] Each HUBZone small business concern participating in the HUBZone joint venture shall provide representation of its HUBZone status.

(d) Representations required to implement provisions of Executive Order 11246-

(1) Previous contracts and compliance. The offeror represents that-

(i) It ☐ has, ☐ has not participated in a previous contract or subcontract subject to the Equal Opportunity clause of this solicitation; and

(ii) It ☐ has, ☐ has not filed all required compliance reports.

(2) Affirmative Action Compliance. The offeror represents that-

(i) It ☐ has developed and has on file, ☐ has not developed and does not have on file, at each establishment, affirmative action programs required by rules and regulations of the Secretary of Labor (41 CFR parts 60-1 and 60-2), or

(ii) It ☐ has not previously had contracts subject to the written affirmative action programs requirement of the rules and regulations of the Secretary of Labor.

(e) Certification Regarding Payments to Influence Federal Transactions (31 <http://uscode.house.gov/> U.S.C. 1352). (Applies only if the contract is expected to exceed \$150,000.) By submission of its offer, the offeror certifies to the best of its knowledge and belief that no Federal appropriated funds have been paid or will be paid to any person for influencing or attempting to influence an officer or employee of any agency, a Member of Congress, an officer or employee of Congress or an employee of a Member of Congress on his or her behalf in connection with the award of any resultant contract. If any registrants under the Lobbying Disclosure Act of 1995 have made a lobbying contact on behalf of the offeror with respect to this contract, the offeror shall complete and submit, with its offer, OMB Standard Form LLL, Disclosure of Lobbying Activities, to provide the name of the registrants.

The offeror need not report regularly employed officers or employees of the offeror to whom payments of reasonable compensation were made.

(f) Buy American Certificate. (Applies only if the clause at Federal Acquisition Regulation (FAR) 52.225-1, Buy American-Supplies, is included in this solicitation.)

(1)

(i) The Offeror certifies that each end product, except those listed in paragraph (f)(2) of this provision, is a domestic end product and that each domestic end product listed in paragraph (f)(3) of this provision contains a critical component.

(ii) The Offeror shall list as foreign end products those end products manufactured in the United States that do not qualify as domestic end products. For those foreign end products that do not consist wholly or predominantly of iron or steel or a combination of both, the Offeror shall also indicate whether these foreign end products exceed 55 percent domestic content, except for those that are COTS items. If the percentage of the domestic content is unknown, select "no".

(iii) The Offeror shall separately list the line item numbers of domestic end products that contain a critical component (see FAR 25.105).

(iv) The terms "commercially available off-the-shelf (COTS) item," "critical component," "domestic end product," "end product," "foreign end product," and "United States" are defined in the clause of this solicitation entitled "Buy American-Supplies."

(2) Foreign End Products:

| Line Item No. | Country of Origin | Exceeds 55% domestic content (yes/no) |
|---------------|-------------------|---------------------------------------|
| _____         | _____             |                                       |
| _____         | _____             |                                       |
| _____         | _____             |                                       |

*[List as necessary]*

(3) Domestic end products containing a critical component:

Line Item No. \_\_\_\_  
*[List as necessary]*

(4) The Government will evaluate offers in accordance with the policies and procedures of FAR part 25.

(g)

- (1) Buy American-Free Trade Agreements-Israeli Trade Act Certificate. (Applies only if the clause at FAR 52.225-3, Buy American-Free Trade Agreements-Israeli Trade Act, is included in this solicitation.) Agreements-Israeli Trade Act.”

(i)

(A) The Offeror certifies that each end product, except those listed in paragraph (g)(1)(ii) or (iii) of this provision, is a domestic end product and that each domestic end product listed in paragraph (g)(1)(iv) of this provision contains a critical component.

(B) The terms "Bahraini, Moroccan, Omani, Panamanian, or Peruvian end product," "commercially available off-the-shelf (COTS) item," "critical component," "domestic end product," "end product," "foreign end product," "Free Trade Agreement country," "Free Trade Agreement country end product," "Israeli end product," and "United States" are defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act."

- (ii) The Offeror certifies that the following supplies are Free Trade Agreement country end products (other than Bahraini, Moroccan, Omani, Panamanian, or Peruvian end products) or Israeli end products as defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act."

Free Trade Agreement Country End Products (Other than Bahraini, Moroccan, Omani, Panamanian, or Peruvian End Products) or *Israeli End Products*:

| Line Item No. | Country of Origin |
|---------------|-------------------|
| _____         | _____             |
| _____         | _____             |
| _____         | _____             |

[List as necessary]

- (iii) The Offeror shall list those supplies that are foreign end products (other than those listed in paragraph (g)(1)(ii) of this provision) as defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act." The Offeror shall list as other foreign end products those end products manufactured in the United States that do not qualify as domestic end products. For those foreign end products that do not consist wholly or predominantly of iron or steel or a combination of both, the Offeror shall also indicate whether these foreign end products exceed 55 percent domestic content, except for those that are COTS items. If the percentage of the domestic content is unknown, select "no".

*Other Foreign End Products:*

| Line Item No. | Country of Origin | Exceeds 55% domestic content (yes/no) |
|---------------|-------------------|---------------------------------------|
| _____         | _____             |                                       |
| _____         | _____             |                                       |
| _____         | _____             |                                       |

[List as necessary]

(iv) The Offeror shall list the line item numbers of domestic end products that contain a critical component (see FAR 25.105).

Line Item No. \_\_\_\_

[List as necessary]

(v) The Government will evaluate offers in accordance with the policies and procedures of FAR part 25.

(2) *Buy American-Free Trade Agreements-Israeli Trade Act Certificate*, Alternate I. If Alternate I to the clause at FAR [52.225-3](#) is included in this solicitation, substitute the following paragraph (g)(1)(ii) for paragraph (g)(1)(ii) of the basic provision:

(g)(1)(ii) The offeror certifies that the following supplies are Canadian end products as defined in the clause of this solicitation entitled “Buy American-Free Trade Agreements-Israeli Trade Act”:

*Israeli End Products:*

| Line Item No. |
|---------------|
| _____         |
| _____         |
| _____         |

[List as necessary]

(3) *Buy American-Free Trade Agreements-Israeli Trade Act Certificate*, Alternate III. If Alternate III to the clause at 52.225-3 is included in this solicitation, substitute the



following paragraphs (g)(1)(i)(B) and (g)(1)(ii) for paragraphs (g)(1)(i)(B) and (g)(1)(ii) of the basic provision:

(g)(1)(i)(B) The terms “Korean end product”, “commercially available off-the-shelf (COTS) item,” “critical component,” “domestic end product,” “end product,” “foreign end product,” “Free Trade Agreement country,” “Free Trade Agreement country end product,” “Israeli end product,” and “United States” are defined in the clause of this solicitation entitled “Buy American—Free Trade Agreements—Israeli Trade Act.”

(g)(1)(ii) The Offeror certifies that the following supplies are Korean end products or Israeli end products as defined in the clause of this solicitation entitled “Buy American—Free Trade Agreements—Israeli Trade Act”:

Korean End Products or Israeli End Products:

| Line Item No. | Country of Origin |
|---------------|-------------------|
| _____         | _____             |
| _____         | _____             |
| _____         | _____             |

*[List as necessary]*

(4) Trade Agreements Certificate. (Applies only if the clause at FAR 52.225-5, Trade Agreements, is included in this solicitation.)

(i) The offeror certifies that each end product, except those listed in paragraph (g)(4)(ii) of this provision, is a U.S.-made or designated country end product, as defined in the clause of this solicitation entitled "Trade Agreements."

(ii) The offeror shall list as other end products those end products that are not U.S.-made or designated country end products.

Other End Products:

| Line Item No. | Country of Origin |
|---------------|-------------------|
| _____         | _____             |

| Line Item No. | Country of Origin |
|---------------|-------------------|
| _____         | _____             |
| _____         | _____             |

[List as necessary]

(iii) The Government will evaluate offers in accordance with the policies and procedures of FAR part 25. For line items covered by the WTO GPA, the Government will evaluate offers of U.S.-made or designated country end products without regard to the restrictions of the Buy American statute. The Government will consider for award only offers of U.S.-made or designated country end products unless the Contracting Officer determines that there are no offers for such products or that the offers for such products are insufficient to fulfill the requirements of the solicitation.

(h) Certification Regarding Responsibility Matters (Executive Order 12689). (Applies only if the contract value is expected to exceed the simplified acquisition threshold.) The offeror certifies, to the best of its knowledge and belief, that the offeror and/or any of its principals—

(1) ☐ Are, ☐ are not presently debarred, suspended, proposed for debarment, or declared ineligible for the award of contracts by any Federal agency;

(2) ☐ Have, ☐ have not, within a three-year period preceding this offer, been convicted of or had a civil judgment rendered against them for: commission of fraud or a criminal offense in connection with obtaining, attempting to obtain, or performing a Federal, state or local government contract or subcontract; violation of Federal or state antitrust statutes relating to the submission of offers; or commission of embezzlement, theft, forgery, bribery, falsification or destruction of records, making false statements, tax evasion, violating Federal criminal tax laws, or receiving stolen property;

(3) ☐ Are, ☐ are not presently indicted for, or otherwise criminally or civilly charged by a Government entity with, commission of any of these offenses enumerated in paragraph (h)(2) of this clause; and

(4) ☐ Have, ☐ have not, within a three-year period preceding this offer, been notified of any delinquent Federal taxes in an amount that exceeds the threshold at 9.104-5(a)(2) for which the liability remains unsatisfied.

(i) Taxes are considered delinquent if both of the following criteria apply:

(A) The tax liability is finally determined. The liability is finally determined if it has been assessed. A liability is not finally determined if there is a pending administrative or judicial challenge. In the case of a judicial challenge to the liability, the liability is not finally determined until all judicial appeal rights have been exhausted.

(B) The taxpayer is delinquent in making payment. A taxpayer is delinquent if the taxpayer has failed to pay the tax liability when full payment was due and required. A taxpayer is not delinquent in cases where enforced collection action is precluded.

(ii) Examples.

(A) The taxpayer has received a statutory notice of deficiency, under I.R.C. §6212, which entitles the taxpayer to seek Tax Court review of a proposed tax deficiency. This is not a delinquent tax because it is not a final tax liability. Should the taxpayer seek Tax Court review, this will not be a final tax liability until the taxpayer has exercised all judicial appeal rights.

(B) The IRS has filed a notice of Federal tax lien with respect to an assessed tax liability, and the taxpayer has been issued a notice under I.R.C. §6320 entitling the taxpayer to request a hearing with the IRS Office of Appeals contesting the lien filing, and to further appeal to the Tax Court if the IRS determines to sustain the lien filing. In the course of the hearing, the taxpayer is entitled to contest the underlying tax liability because the taxpayer has had no prior opportunity to contest the liability. This is not a delinquent tax because it is not a final tax liability. Should the taxpayer seek tax court review, this will not be a final tax liability until the taxpayer has exercised all judicial appeal rights.

(C) The taxpayer has entered into an installment agreement pursuant to I.R.C. §6159. The taxpayer is making timely payments and is in full compliance with the agreement terms. The taxpayer is not delinquent because the taxpayer is not currently required to make full payment.

(D) The taxpayer has filed for bankruptcy protection. The taxpayer is not delinquent because enforced collection action is stayed under 11 U.S.C. §362 (the Bankruptcy Code).

(i) Certification Regarding Knowledge of Child Labor for Listed End Products (Executive Order 13126). [The Contracting Officer must list in paragraph (i)(1) any end products being acquired under this solicitation that are included in the List of Products Requiring Contractor Certification as to Forced or Indentured Child Labor, unless excluded at 22.1503(b).]

(1) Listed end products.

| Listed End Product | Listed Countries of Origin |
|--------------------|----------------------------|
| _____              | _____                      |
| _____              | _____                      |

(2) Certification. [If the Contracting Officer has identified end products and countries of origin in paragraph (i)(1) of this provision, then the offeror must certify to either (i)(2)(i) or (i)(2)(ii) by checking the appropriate block.]

☐ (i) The offeror will not supply any end product listed in paragraph (i)(1) of this provision that was mined, produced, or manufactured in the corresponding country as listed for that product.

☐ (ii) The offeror may supply an end product listed in paragraph (i)(1) of this provision that was mined, produced, or manufactured in the corresponding country as listed for that product. The offeror certifies that it has made a good faith effort to determine whether forced or indentured child labor was used to mine, produce, or manufacture any such end product furnished under this contract. On the basis of those efforts, the offeror certifies that it is not aware of any such use of child labor.

(j) Place of manufacture. (Does not apply unless the solicitation is predominantly for the acquisition of manufactured end products.) For statistical purposes only, the offeror shall indicate whether the place of manufacture of the end products it expects to provide in response to this solicitation is predominantly-

(1) ☐ In the United States (Check this box if the total anticipated price of offered end products manufactured in the United States exceeds the total anticipated price of offered end products manufactured outside the United States); or

(2) ☐ Outside the United States.

(k) Certificates regarding exemptions from the application of the Service Contract Labor Standards (Certification by the offeror as to its compliance with respect to the contract also constitutes its certification as to compliance by its subcontractor if it subcontracts out the exempt services.) [The contracting officer is to check a box to indicate if paragraph (k)(1) or (k)(2) applies.]

☐ (1) Maintenance, calibration, or repair of certain equipment as described in FAR 22.1003-4(c)(1). The offeror ☐ does ☐ does not certify that-

(i) The items of equipment to be serviced under this contract are used regularly for other than Governmental purposes and are sold or traded by the offeror (or subcontractor in the case of an exempt subcontract) in substantial quantities to the general public in the course of normal business operations;

(ii) The services will be furnished at prices which are, or are based on, established catalog or market prices (see FAR 22.1003-4(c)(2)(ii)) for the maintenance, calibration, or repair of such equipment; and

(iii) The compensation (wage and fringe benefits) plan for all service employees performing work under the contract will be the same as that used for these employees and equivalent employees servicing the same equipment of commercial customers.

☐ (2) Certain services as described in FAR 22.1003-4(d)(1). The offeror ☐ does ☐ does not certify that-

(i) The services under the contract are offered and sold regularly to non-Governmental customers, and are provided by the offeror (or subcontractor in the case of an exempt subcontract) to the general public in substantial quantities in the course of normal business operations;

(ii) The contract services will be furnished at prices that are, or are based on, established catalog or market prices (see FAR 22.1003-4(d)(2)(iii));

(iii) Each service employee who will perform the services under the contract will spend only a small portion of his or her time (a monthly average of less than 20 percent of the available hours on an annualized basis, or less than 20 percent of available hours during the contract period if the contract period is less than a month) servicing the Government contract; and

(iv) The compensation (wage and fringe benefits) plan for all service employees performing work under the contract is the same as that used for these employees and equivalent employees servicing commercial customers.

(3) If paragraph (k)(1) or (k)(2) of this clause applies—

(i) If the offeror does not certify to the conditions in paragraph (k)(1) or (k)(2) and the Contracting Officer did not attach a Service Contract Labor Standards wage determination to the solicitation, the offeror shall notify the Contracting Officer as soon as possible; and

(ii) The Contracting Officer may not make an award to the offeror if the offeror fails to execute the certification in paragraph (k)(1) or (k)(2) of this clause or to contact the Contracting Officer as required in paragraph (k)(3)(i) of this clause.

(l) Taxpayer Identification Number (TIN) (26 U.S.C. 6109, 31 U.S.C. 7701). (Not applicable if the offeror is required to provide this information to the SAM to be eligible for award.)

(1) All offerors must submit the information required in paragraphs (l)(3) through (l)(5) of this provision to comply with debt collection requirements of 31 U.S.C. 7701(c) and 3325(d), reporting requirements of 26 U.S.C. 6041, 6041A, and 6050M, and implementing regulations issued by the Internal Revenue Service (IRS).

(2) The TIN may be used by the Government to collect and report on any delinquent amounts arising out of the offeror's relationship with the Government (31 U.S.C. 7701(c)(3)). If the resulting contract is subject to the payment reporting requirements described in FAR 4.904, the TIN provided hereunder may be matched with IRS records to verify the accuracy of the offeror's TIN.

(3) *Taxpayer Identification Number (TIN).*

☐ TIN: \_\_\_\_\_.

☐ TIN has been applied for.

☐ TIN is not required because:

☐ Offeror is a nonresident alien, foreign corporation, or foreign partnership that does not have income effectively connected with the conduct of a trade or business in the United States and does not have an office or place of business or a fiscal paying agent in the United States;

☐ Offeror is an agency or instrumentality of a foreign government;

☐ Offeror is an agency or instrumentality of the Federal Government.

(4) *Type of organization.*

☐ Sole proprietorship;

☐ Partnership;

☐ Corporate entity (not tax-exempt);

☐ Corporate entity (tax-exempt);

☐ Government entity (Federal, State, or local);

☐ Foreign government;

☐ International organization per 26 CFR1.6049-4;

☐ Other \_\_\_\_\_.

(5) *Common parent.*

☐ Offeror is not owned or controlled by a common parent;

☐ Name and TIN of common parent:

Name \_\_\_\_\_.

TIN \_\_\_\_\_.

(m) Restricted business operations in Sudan. By submission of its offer, the offeror certifies that the offeror does not conduct any restricted business operations in Sudan.

(n) Prohibition on Contracting with Inverted Domestic Corporations.

(1) Government agencies are not permitted to use appropriated (or otherwise made available) funds for contracts with either an inverted domestic corporation, or a subsidiary of an inverted domestic corporation, unless the exception at 9.108-2(b) applies or the requirement is waived in accordance with the procedures at 9.108-4.

(2) Representation. The Offeror represents that—

(i) It ☐ is, ☐ is not an inverted domestic corporation; and

(ii) It ☐ is, ☐ is not a subsidiary of an inverted domestic corporation.

(o) Prohibition on contracting with entities engaging in certain activities or transactions relating to Iran.

(1) The offeror shall e-mail questions concerning sensitive technology to the Department of State at CISADA106@state.gov.

(2) Representation and Certifications. Unless a waiver is granted or an exception applies as provided in paragraph (o)(3) of this provision, by submission of its offer, the offeror—

(i) Represents, to the best of its knowledge and belief, that the offeror does not export any sensitive technology to the government of Iran or any entities or individuals owned or controlled by, or acting on behalf or at the direction of, the government of Iran;

(ii) Certifies that the offeror, or any person owned or controlled by the offeror, does not engage in any activities for which sanctions may be imposed under section 5 of the Iran Sanctions Act; and

(iii) Certifies that the offeror, and any person owned or controlled by the offeror, does not knowingly engage in any transaction that exceeds the threshold at FAR 25.703-2(a)(2) with Iran's Revolutionary Guard Corps or any of its officials, agents, or affiliates, the property and interests in property of which are blocked pursuant to the International Emergency Economic Powers Act (et seq.) (see OFAC's Specially Designated Nationals and Blocked Persons List at <https://www.treasury.gov/resource-center/sanctions/SDN-List/Pages/default.aspx>).

(3) The representation and certification requirements of paragraph (o)(2) of this provision do not apply if-

(i) This solicitation includes a trade agreements certification (e.g., 52.212-3(g) or a comparable agency provision); and

(ii) The offeror has certified that all the offered products to be supplied are designated country end products.

(p) Ownership or Control of Offeror. (Applies in all solicitations when there is a requirement to be registered in SAM or a requirement to have a unique entity identifier in the solicitation).

(1) The Offeror represents that it ☐ has or ☐ does not have an immediate owner. If the Offeror has more than one immediate owner (such as a joint venture), then the Offeror shall respond to paragraph (2) and if applicable, paragraph (3) of this provision for each participant in the joint venture.

(2) If the Offeror indicates "has" in paragraph (p)(1) of this provision, enter the following information:

Immediate owner CAGE code: \_\_\_\_\_.

Immediate owner legal name: \_\_\_\_\_.

(Do not use a "doing business as" name)

Is the immediate owner owned or controlled by another entity: ☐ Yes or ☐ No.

(3) If the Offeror indicates "yes" in paragraph (p)(2) of this provision, indicating that the immediate owner is owned or controlled by another entity, then enter the following information:

Highest-level owner CAGE code: \_\_\_\_\_.

Highest-level owner legal name: \_\_\_\_\_.

(Do not use a "doing business as" name)

(q) Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law.

(1) As required by sections 744 and 745 of Division E of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235), and similar provisions, if contained in subsequent appropriations acts, The Government will not enter into a contract with any corporation that—

(i) Has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability, where the awarding agency is aware of the unpaid tax liability, unless an agency has considered suspension or debarment of the corporation and made a determination that suspension or debarment is not necessary to protect the interests of the Government; or

(ii) Was convicted of a felony criminal violation under any Federal law within the preceding 24 months, where the awarding agency is aware of the conviction, unless an agency has considered suspension or debarment of the corporation and made a determination that this action is not necessary to protect the interests of the Government.

(2) The Offeror represents that—

(i) It is ☐ is not ☐ a corporation that has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability; and

(ii) It is ☐ is not ☐ a corporation that was convicted of a felony criminal violation under a Federal law within the preceding 24 months.

(r) Predecessor of Offeror. (Applies in all solicitations that include the provision at 52.204-16, Commercial and Government Entity Code Reporting.)

(1) The Offeror represents that it ☐ is or ☐ is not a successor to a predecessor that held a Federal contract or grant within the last three years.

(2) If the Offeror has indicated "is" in paragraph (r)(1) of this provision, enter the following information for all predecessors that held a Federal contract or grant within the last three years (if more than one predecessor, list in reverse chronological order):

Predecessor CAGE code: (or mark "Unknown").

Predecessor legal name: \_\_\_\_.

(Do not use a "doing business as" name).

(s) [Reserved].

(t) [RESERVED]

(u)

(1) In accordance with section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions), Government agencies are not permitted to use appropriated (or otherwise made available) funds for contracts with an entity that requires employees or subcontractors of such entity seeking to report waste, fraud, or abuse to sign internal confidentiality agreements or statements prohibiting or otherwise restricting such employees or subcontractors from lawfully reporting such waste, fraud, or abuse to a designated investigative or law



enforcement representative of a Federal department or agency authorized to receive such information.

(2) The prohibition in paragraph (u)(1) of this provision does not contravene requirements applicable to Standard Form 312 (Classified Information Nondisclosure Agreement), Form 4414 (Sensitive Compartmented Information Nondisclosure Agreement), or any other form issued by a Federal department or agency governing the nondisclosure of classified information.

(3) Representation. By submission of its offer, the Offeror represents that it will not require its employees or subcontractors to sign or comply with internal confidentiality agreements or statements prohibiting or otherwise restricting such employees or subcontractors from lawfully reporting waste, fraud, or abuse related to the performance of a Government contract to a designated investigative or law enforcement representative of a Federal department or agency authorized to receive such information (e.g., agency Office of the Inspector General).

(v) Covered Telecommunications Equipment or Services-Representation. Section 889(a)(1)(A) and section 889 (a)(1)(B) of Public Law 115-232.

(1) The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for "covered telecommunications equipment or services".

(2) The Offeror represents that—

(i) It ☐ does, ☐ does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument.

(ii) After conducting a reasonable inquiry for purposes of this representation, that it ☐ does, ☐ does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services.

(End of Provision)

#### **52.216-1 Type of Contract (Apr 1984)**

The government contemplates award of one best value, firm-fixed-price contract resulting from this solicitation.

(End of provision)

#### **52.233-2 Service of Protest (Sep 2006)**

- A. Protests, as defined in Section 33.101 of the Federal Acquisition Regulation, that are filed directly with an agency, and copies of any protests that are filed with the General Accountability Office (GAO) shall be served on the Contracting Officer (addressed as follows) by obtaining written and dated acknowledgment of receipt from the Office of Acquisition Management.

Contracting Officer  
National Park Service

Harpers Ferry Center  
Office of Acquisition Management  
P.O. Box 50, 67 Mather Place  
Harpers Ferry, West Virginia 25425-0050

- B. The copy of any protest shall be received in the office designated above within one day of filing a protest with the GAO.

(End of provision)

**52.252-1 Solicitation Provisions Incorporated by Reference (Feb 1998)**

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer shall make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this address: [www.acquisition.gov](http://www.acquisition.gov)

(End of Provision)

**52.252-5 Authorized Deviations in Provisions (Nov 2020)**

- (a) The use in this solicitation of any Federal Acquisition Regulation (48 CFR Chapter 1) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the provision.
- (b) The use in this solicitation of any Department of the Interior Acquisition Regulation (48 CFR Chapter 14) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of Provision)